

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

Jimex USA, Inc., *Claimant*

v.

UNITRANS-PRA CO., INC., *Respondent*.

DOCKET NO. 2036(I)

Served: July 16, 2026

ORDER OF: Jamie L. Mendelson, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION

This proceeding arises from a small claims complaint (“Claim”) filed by Jimex USA, Inc. (“Jimex” or “Claimant”) against Unitrans-PRA Co., Inc. (“Unitrans” or “Respondent”) before the Federal Maritime Commission (“FMC” or “Commission”). Claimant booked numerous shipments with Respondent to export vehicles from the United States. Claimant alleges that Respondent violated the Shipping Act by backdating shipping invoices, imposing unlawful late fees, failing to provide supporting documentation for pass-through charges to include detention fees, and refusing to release a container despite receiving full payment. Claimant seeks reparations in the amount of \$44,606.69. Respondent denies the allegations and asserts that Claimant still owes an outstanding balance of \$11,136 for unpaid invoices.

For the reasons discussed in this decision, Claimant has established by a preponderance of the evidence that Respondent violated 46 U.S.C. § 41102(c) by engaging in an unreasonable practice of assessing excessive late payment fees. Additionally, Respondent violated 46 U.S.C. § 41104(a)(15) by invoicing detention charges where the contents of the invoice did not include the required minimum information set forth in section 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6.

II. BACKGROUND

A. Procedural History

On July 23, 2025, the Office of the Secretary (“OS”) of the FMC received the Claim for informal adjudication from Claimant Jimex against Respondent Unitrans. On July 28, 2025, OS

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

mailed a Notice of Filing of Small Claims Complaint and Assignment (“Notice”) and a copy of the Claim to Unitrans and instructed Unitrans to file a response by August 22, 2025.

On August 18, 2025, and on August 20, 2025, Jimex submitting two filings of supplemental documentation in support of its Claim, with certificates of service stating that a copy of each filing was emailed to Unitrans. (“C. Supp. Aug. 18, 2025” & “C. Supp. Aug. 20, 2025”).

On September 2, 2025, Unitrans contacted OS, stating that it had not received the Notice and the Claim. Therefore, on September 9, 2025, OS issued a Revised Notice of Filing of Small Claims Complaint and Assignment (“Revised Notice”), extending the date for Unitrans to file a response to October 6, 2025. The Revised Notice was mailed to Unitrans at a different address provided by Unitrans, together with a copy of the Claim.

On November 13, 2025, Unitrans filed Respondent’s Pre-Answer Motion to Dismiss for Failure of Timely and Proper Service (“Motion to Dismiss”).² Jimex filed an Opposition to Respondent’s Motion to Dismiss the same day, November 13, 2025. On November 18, 2025, the Small Claims Officer (“SCO”) issued an Order Denying Respondent’s Motion to Dismiss. The SCO ordered Unitrans to file its response to the Claim by November 24, 2025.

On November 24, 2025, Unitrans filed a Verified Answer (“Answer”) to the Claim. In its Answer, Unitrans consented to the Commission’s informal procedure for adjudication of small claims as outlined in Subpart S (46 C.F.R. §§ 502.301-502.305). On November 25, 2025, Jimex filed Complainant’s Opposition to Respondent’s Verified Answer (“Opposition to Answer”), with attachments. Unitrans filed an Objection to Improper Filing and Request that the Commission Disregard Complainant’s Opposition (“Objection to Opposition”) on the same date.

On February 12, 2026, the Chief Administrative Law Judge issued a notice reassigning the proceeding to the undersigned. On February 12, 2026, an Order striking both Claimant’s Opposition to Answer and Respondent’s Objection to Opposition was issued, as the filings were not in compliance with the streamlined procedures that the parties consented to under Subpart S.

On February 18, 2026, an Order Requesting Additional Information (“1st RFI”) was issued pursuant to 46 C.F.R. § 502.304(a) and (e). On April 13, 2026, both Claimant and Respondent submitted responses to the 1st RFI. (“C. 1st RFI Resp.” & “R. 1st RFI Resp.”). On April 27, 2026, both Claimant and Respondent submitted replies to each other’s 1st RFI responses. (“C. 1st RFI Reply” & “R. 1st RFI Reply”).

On June 8, 2026, a Second Order Requesting Additional Information (“2d RFI”) was issued. Both parties filed a response to the RFI on July 6, 2026. (“C. 2d RFI Resp.” and “R. 2d RFI Resp.”). Both parties submitted a reply to the other party’s response on July 13, 2026. (“C. 2d RFI Reply” and “R. 2d RFI Reply”).

² The time for filing was extended due to a lapse of appropriations from October 1, 2025, to November 13, 2025.

B. Preliminary Issues

1. Confidential Communications

The Claim attaches email correspondence with the Office of Consumer Affairs and Dispute Resolution Services (“CADRS”). (Claim at Attch. 3). Respondent’s Answer correctly asserts that CADRS communications are confidential and requests that the communications be stricken from the record. (Answer at p. 8). The CADRS emails contain a warning that, “All communications with CADRS staff are confidential and subject to the confidentiality provisions under the Administrative Dispute Resolution Act (ADRA), 5 U.S.C. § 574. Except as specifically set forth in ADRA, neither CADRS staff nor the parties to this matter shall disclose any communications.” (Claim at Attch. 3). Claimant has not asserted any specific basis allowing for an exception to confidentiality under the ADRA. Accordingly, the CADRS communications at Attachment 3 of the Claim are stricken from the record and will not be considered in this decision.

2. Sworn Claim

Respondent argues that the Claim is “defective” due to improper “verification” because the notary seal is from the State of Massachusetts while the Claim was signed in the State of Florida. (Answer at pp. 9-10). Under the informal procedures of Subpart S for small claims, a “sworn claim” must be filed. 46 C.F.R. § 502.304(a). Here, the Claim includes the following statement:

State of Florida
County of Orange

I, Farkhod Sabrivov, President of Jimex USA Inc, declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

(Claim at p. 2). The statement is immediately followed by Farkhod Sabrivov’s signature, and the statement “Subscribed and sworn before me this 23rd day of July, 2025,” followed by the notary public’s signature along with a notary seal from the State of Massachusetts. (*Id.*). Respondent contends that the notary verification is “void” because a “notary cannot notarize outside their commissioning state.” (Answer at p. 10).

Regardless of the validity of the notarization, Claimant’s own sworn statement under the penalty of perjury is sufficient to meet the requirement for a “sworn” complaint. While the informal procedure at Exhibit 1 of 46 C.F.R. § 502.304(a) includes a standard format to follow for filing a claim—and that format includes a “verification” by a notary public—the FMC’s publicly available instructions for filing a “sworn” small claims complaint clarify that a small claims complaint must “[b]e properly signed and sworn *or* verified using a notary public.” <https://www.fmc.gov/filing-a-small-claims-complaint/> (last visited Jul. 15, 2026) (emphasis added). These instructions are in accord with 28 U.S.C. § 1746, which directs:

Wherever, under any law of the United States or under any rule, regulation, order, or requirement made pursuant to law, any matter is required or permitted

to be supported, evidenced, established, or proved by the sworn declaration, verification, certificate, statement, oath, or affidavit, in writing of the person making the same (other than a deposition, or an oath of office, or an oath required to be taken before a specified official other than a notary public), such matter may, with like force and effect, be supported, evidenced, established, or proved by the unsworn declaration, certificate, verification, or statement, in writing of such person which is subscribed by him, as true under penalty of perjury, and dated, in substantially the following form:

....

(2) If executed within the United States, its territories, possessions, or commonwealths: “I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct. Executed on (date). Executed on (date). (Signature)”.

Thus, “the phrase ‘sworn to’ in a federal regulation . . . requires *either* notarization *or* a declaration substantially similar to ‘I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct. Executed on (date).’” *Clark v. Wright Nat’l Flood Ins. Co.*, 821 Fed. App’x 342, 345-46 (5th Cir. 2020) (quoting 28 U.S.C. § 1746) (emphasis added). Here, the statement that “I, Farkhod Sabrivov, President of Jimex USA Inc, declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct” (Claim at p. 2), followed by the declarant’s signature and the date the statement was “subscribed and sworn,” substantially follows the format prescribed in 28 U.S.C. § 1746. Accordingly, the Claim is properly sworn.

C. Argument of the Parties

1. Claimant

Claimant alleges that Respondent issued shipping invoices with “backdated” payment due dates and “unlawfully” added late fees, administrative fees, and miscellaneous charges to the invoices. (Claim at p. 1; C. Supp. Aug. 18, 2025 at p. 1; C. 1st RFI Resp. at Req. 1). Claimant received the invoices after the payment due date listed on the invoice had already passed and late payment fees were already assessed. According to Claimant, the late payment fees were not disclosed at the time the shipments were booked and were not supported by Respondent’s contract terms. Claimant also alleges that Respondent improperly altered third-party invoices and failed to provide supporting documentation for pass-through charges, including detention fees. (*Id.*). Finally, Claimant alleges that Respondent unreasonably refused to release container HLBU3326000, despite full payment of the invoiced amount. (*Id.*).

Claimant asserts that Respondent’s conduct amounted to unreasonable practices and the imposition of unjust and unreasonable charges. Claimant alleges that Respondent violated sections 41102(c), 41104(a)(3), 41104(a)(5), and 41104(b) of the Shipping Act, and seeks reparations in the amount of \$44,606.69. (*Id.*).

2. Respondent

Respondent argues that the FMC lacks jurisdiction over the Claim because the “FMC does not adjudicate ordinary billing disputes.” (Answer at p. 9). Respondent further asserts that the FMC lacks jurisdiction because FT&T Consulting, Inc. (“FT&T”)—Respondent’s agent—was the entity that invoiced the disputed charges, and FT&T is not a “common carrier” subject to the Shipping Act. (*Id.*).

In response to the allegations, Respondent contends that Claimant consistently failed to pay invoices on time, which resulted in the addition of late fees and administrative fees. (*Id.* at 3; R. 1st RFI Resp. at pp. 108, 145, 397-400). Specifically, when Claimant failed to pay the ocean freight by the due date, Respondent added “collection-related” fees that consisted of a \$250 late payment flat fee, \$100 administrative fee, \$250 monthly fee, and 1.5% finance charge. (R. 1st RFI Resp. at pp. 108, 196-97, 397-98). Respondent claims that the collection-related fees were disclosed on the invoice itself as well as prior notices that were included in email communications. (*Id.* at 196-97). Respondent denies “backdating” invoices and maintains that Claimant had access to the invoices on Respondent’s online portal as soon as they were issued. (Answer at p. 7; R. 1st RFI Resp. at pp. 191-94). Under the terms of the bill of lading, the ocean freight was booked as prepaid, and the invoice payment due dates were established on or after the date the container was accepted at the port of loading. (*Id.* at 194).

Respondent also denies altering third-party invoices and has produced the third-party invoices underlying the pass-through charges on the invoices at issue. (*Id.* at 393-96; 438-40, 447-49, 455-57, 553-55, 629-31; Answer at p. 6). Finally, Respondent asserts that container HLBU3326000 was released on or about August 15, 2025, once the funds were cleared from Claimant’s final payment of the invoiced amount due. (R. 1st RFI Resp. at p. 135).

III. PERTINENT FACTS ESTABLISHED BY THE RECORD (“PF”)

A. The Parties

1. Claimant Jimex USA, Inc., doing business as Best Auto USA, is an FMC licensed Ocean Transportation Intermediary and a wholesale motor vehicle dealer engaged in purchasing vehicles in the United States for export. (Claim at Attch. 4; Answer at p. 3).
2. Respondent Unitrans-PRA Co., Inc., is an FMC licensed non-vessel operating common carrier (“NVOCC”). (Answer at p. 3; *see also* “OTI List Download” at <https://www2.fmc.gov/oti/> (last visited Jul. 15, 2026)).
3. Claimant and Respondent had a history of conducting business together from approximately 2021 to 2025, in which Claimant would book shipments for ocean transportation with Respondent. (C. 1st RFI Resp. at Req. 4, p. 1; R. 1st RFI Resp. at p. 145). Respondent arranged for the ocean transportation under confidential service contracts with ocean carriers. (Answer at p. 3).

B. FT&T Consulting, Inc. as agent for Respondent

4. FT&T Consulting, Inc. (“FT&T”) serves as the accounting, receivables management service, and collections arm of Respondent. (R. 1st RFI Resp. at p. 2). In that role, FT&T performs administrative services on behalf of Respondent to include issuing invoices for shipments arranged by Respondent, maintaining account records, processing and recording payment, monitoring outstanding balances, and undertaking collection-related activity when balances become delinquent. (*Id.* at 2-3).
5. There is no written agreement between Respondent and FT&T. (R. 1st RFI Resp. at p. 4). The scope of FT&T’s authority to act on behalf of Respondent “is established through the parties’ longstanding operational structure and course of performance in handling Respondent’s accounting and receivables management functions.” (*Id.*).

C. Course of conduct in booking shipments and shipping terms

6. In the parties’ standard course of dealing, Respondent provided advance notice of the applicable sea freight rates. (R. 1st RFI Resp. at pp. 193, 184-89). Claimant then submitted a booking request, which Respondent accepted by having FT&T email a booking confirmation form to Claimant. (*Id.* at pp. 6, 9, 14-15, 19-20, 26-27, 42-43, 54-55, 61-62, 205-06, 213-14, 221-22, 227-28, 234-35, 242-43, 251-52, 263-64, 270-71; 277-78, 287-88, 294-95, 302-03, 309-10, 317-18, 324-25, 331-32, 337-38, 343-44). After loading a container, Claimant emailed FT&T the dock receipt and multimodal dangerous good form (where applicable). (*Id.* at pp. 6, 11-13, 21-23, 48-50, 57-58, 193, 229-30, 236-38, 245-47, 253-57, 265-66, 272-73, 279-80, 289-90, 296-98, 304-05, 311-13, 320-21, 326-28, 333-34, 339-40, 345-46). FT&T then emailed a draft bill of lading from the shipping line for Claimant’s review and an opportunity to make any needed corrections. (*Id.* at pp. 426-28, 442-44, 459-61, 465-67, 471-73, 485-88, 535-37).
7. The terms for each shipment were set forth in Respondent’s House Bill of Lading Contract Terms and Conditions, which is publicly available on Respondent’s website. (R. 1st RFI Resp. at p. 7). Respondent’s House Bill of Lading Contract Terms and Conditions provides, in relevant part:

1. DEFINITIONS

....

“Carrier” means Unitrans - PRA Co., Inc. and its servants and agents.

....

“Merchant” includes the consignor, shipper, exporter, seller, consignee, owner of the Goods, or the lawful holder or endorsee of this Bill of Lading, and any Person lawfully acting on behalf of any of the aforementioned Persons.

....

“Charges” includes, without limitation, freight, all expenses, costs, detention, demurrage, general average, and any other money obligations incurred in the Carriage of the Goods or payable by the Merchant, and all collection costs for freight and other amounts due from the Merchant, including, without limitation, attorneys’ fees and court costs.

2. CARRIER’S TARIFF

The terms of Carrier’s applicable tariff are incorporated into this Bill of Lading as though fully set forth. The Carrier or its agents shall provide copies of said tariff upon request, or where applicable, from a government body with which the tariff is on file. In case of any inconsistency between this Bill of Lading and the applicable tariff, this Bill of Lading shall prevail.

....

12. FREIGHT AND CHARGES

(A) All freight shall be deemed fully, finally, and unconditionally earned on the Carrier’s receipt of the Goods and shall be paid and non-returnable in any event.

....

(D) The Merchant shall, where applicable, be jointly and severally liable to the Carrier for payment of all freight, demurrage, detention, general average, and Charges including, without limitation, court costs, interest, expenses, and attorneys’ fees the Carrier incurs in collecting any sums due, failing which shall be considered a default by the Merchant in the payment of freight and Charges.

(*Id.* at 97) (emphasis in original).

8. Respondent’s House Bill of Lading Contract Terms and Conditions does not specify any late payment fees, such as a finance charge, administrative fee, late payment flat fee, or late payment monthly fee. (R. 1st RFI Resp. at p. 97).
9. Respondent’s applicable rules tariff is publicly available at <http://rates.descartes.com>. (<https://www2.fmc.gov/FMC1Users/scripts/ExtReports.asp?tariffClass=oti> (last visited Jul. 15, 2026)). Respondent’s tariff provides, in relevant part:

The Merchant shall, where applicable, be jointly and severally liable to the Carrier for payment of all freight, demurrage, detention, general average, and Charges including, without limitation, court costs, interest, expenses, and attorneys’ fees the Carrier incurs in collecting any sums due, failing which shall be considered a default by the Merchant in the payment of freight and Charges.

(Unitrans-PRA Co., Inc. Tariff Code Rule Report, available at <http://rates.descartes.com> (last visited Jul. 15, 2026)). The tariff does not specify any late payment fees, such as a

finance charge, administrative fee, late payment flat fee, or late payment monthly fee. (*Id.*).

D. Notice of online tracking tool

10. On February 6, 2023, Respondent sent an email to Claimant with the subject line “Track your cargo now online!” (R. 1st RFI Resp. at p. 147). The email message provides a web link, login name, and password, and states:

Dear Customer:

In our never ending effort to provide you with the best customer service available, we now offer you the ability to check the status of your cargo online, using the best available tracking tool. You will be able to see:

- Warehouse Receipts
- Shipments with bills of lading and other related documents
- Invoices

Please go to <http://www.unitrans-pra.com/en/tracking/body.html>

(*Id.*).

E. Format of invoices

11. Each invoice in the record follows the same format. (*See, e.g.*, R. 1st RFI Resp. at pp. 462-63). The invoice includes Respondent’s logo, Respondent’s web address, and the name and contact information for FT&T. The invoice lists an invoice “Number,” “Date,” “Due Date,” “Entry Date,” “House Way Bill” number, “Container #,” and other booking information. (*Id.*). The invoice also includes a “Description of Charges” and a total amount due. (*Id.*).
12. Each invoice contains the following language with respect to past due amounts:

We reserve the right to make a Finance Charge of 1.5% per month of [sic] the higher rate permitted by law on all amounts past due and add all collection fees. Terms and conditions of transportation as per Air Waybill or Bill of Lading.

(*See, e.g.*, R. 1st RFI Resp. at p. 462).

F. Course of conduct in emailing invoices

13. The record contains numerous emails from FT&T and Claimant, sent between February 8, 2024, and March 19, 2025, in which FT&T attached invoice(s) for payment with the following message:

Dear Customers,

Please find attached invoice. All wire transfers and ACH payments should be made to the following institution:

....

Please be advised that your invoice should be paid by the specified due date. If payment is not received on time, we reserve the right to charge \$250 as one time flat fee jointly with 1.5% monthly interest starting from the due date.

(R. 1st RFI Resp. at pp. 158, 210, 218, 231, 350, 354; C. 1st RFI Reply at Ex. 1, p. 20; R. 1st RFI Reply at pp. 691, 710).

14. The record contains multiple emails from Claimant to FT&T, sent between February 20, 2025, and March 19, 2025, in which Claimant asked FT&T to send invoices. (C. 1st RFI Reply at Ex. 1, pp. 9, 17, 18).
15. On March 19, 2025, FT&T sent Claimant an email with the subject line “Unitrans-Pra // Open Balance.” (R. 1st RFI Resp. at p. 248). The email includes a chart listing 18 invoices, and the corresponding invoices were attached to the email. (*Id.*). The email message does not include any statement about fees in the event of late payment. (*Id.*).
16. On March 31, 2025, FT&T sent Claimant an email with the subject line “Open balance – Unitrans-Pra, 15-31 March.” (R. 1st RFI Resp. at p. 274). The email contains a chart listing 11 invoices, and the corresponding invoices were attached to the email. (*Id.*). The email message does not include any statement about fees in the event of late payment. (*Id.*).
17. On April 14, 2025, FT&T sent Claimant an email with the subject line “Unitrans – Open Balance March 14.” (R. 1st RFI Resp. at p. 281). The emails contains a chart listing 7 invoices, and the corresponding invoices were attached to the email. (*Id.*). The email message does not include any statement about fees in the event of late payment. (*Id.*).

G. Jimex’s complaints about detention fees and delays

18. On March 4, 2025, Claimant emailed Respondent about “constant problems with detention charges, inspections, demurrage, and similar issues.” (C. 2d RFI Reply at Ex. 2, pp. 2-4). The email message states, in part:

If you look at any of your recent invoices, there is always an additional detention charge.

Previously, the reasons for those charges were understandable, but now this is happening everywhere (at all ports) and with almost every container.

At first, I thought the problem was caused by a particular warehouse, but now we are using different warehouses (SOTBY, PGL, B&C, M&E Baltic) and different ports, yet detention charges are being added everywhere.

....

All of the warehouses are telling us that this situation is not normal and that there should be an invoice from the shipping line as proof of these additional charges. We have not been provided with any such invoices.

It would be easier for us to move our business to another freight forwarder, such as Atlantic, W8, CargoLoop, or others, than to continue paying unexplained additional freight-related charges out of our own pocket and operating at a loss. I assume you also do not operate your business at a loss.

We do not want to continue working this way, and we will not.

We respectfully request that you:

1. Arrange a meeting with your management.
2. **Provide us with the original invoices from the shipping line for all detention charges, inspections, demurrage charges, and any other additional costs, together with proof of payment showing that you actually paid those charges to the shipping line. The warehouses specifically requested these documents because they do not believe the charges are legitimate without supporting evidence.**

....

(*Id.*) (emphasis in original).

19. On March 5, 2025, Respondent responded by email to Claimant, assuring Claimant that “[w]e value you as our business partner and fully understand the seriousness of the current situation.” (C. 2d RFI Reply at Ex. 2, pp. 5). The email message states that Respondent did not have “complete information regarding this matter” but that Respondent was **“already collecting all of the requested documents** (including invoices from the shipping lines, proof of payment, and other supporting documents) and will provide them ... as soon as possible.” (*Id.* at 5) (emphasis in original).
20. On March 14, 2025, FT&T emailed Claimant attaching “the original invoices from the shipping line” for the detention fees Claimant complained about in its March 4, 2025, email (PF 18). (C. 2d RFI Reply at Ex. 2, pp. 7-8).³
21. On March 19, 2025, Claimant sent an email with the subject line “Re: URGENTLY need invoices for these following bookings.” (C. 1st RFI Reply at Ex. 1, p. 9). The email message states, in part:

³ The “shipping line” detention invoices attached to the email are for shipments that are not at issue in this proceeding. They do not relate to Invoice Nos. 90855, 91146, 91156, 91692, and 91289-1, which are discussed in PF 49. (*Compare* C. 2d RFI Reply at Ex. 2, pp. 7-8 *with* R. 1st RFI Resp. at pp. 436-37, 445-46, 453-54, 539-40, 627-628).

Good day all

I have requested from you regarding invoices but **STILL** I did not get the invoices.!! We urgently need these following invoices. So once you have seen this message, send us the all following INVOICES!!!!

Waiting for your response!!

(*Id.*) (emphasis in original) (errors in original). The email then lists 24 different booking/container numbers. (*Id.*).

22. On March 30, 2025, Claimant sent an email to an employee of FT&T, and copying Respondent, expressing concerns about detention charges “caused by a shipping carrier or your company mistake” and invoice delays. (C. 1st RFI Reply at Ex. 1, p. 9). The email message states, in part:

In the past, we have always received invoices after the container has arrived at its final destination. We only received the invoices after repeated requests from [Claimant’s employee] to [FT&T’s employee], which were made 5-10 times. As I explained to you on the phone, we were unaware of the additional charges because we never received the invoices in a timely manner.

(*Id.*).

23. On April 29, 2025, Claimant sent Respondent an email with the subject line “Need Urgently get RELEAES [sic] for Following containers.” (C. 1st RFI Reply at Ex. 1, p. 10). In the email message, Claimant states: “We are waiting for getting Releases about 2 weeks for the following containers. Client is complaining us sending late releases. After we pay containers to you, you should send us 2 or 3 days later. But we cannot wait 14 DAYS!!!” (*Id.*). The email lists 6 different containers that Claimant claims were “paid ... but still not get the Releases.” (*Id.*).

H. Addition of late fees to invoices

24. On May 4, 2025, Respondent sent Claimant an email with the subject line “Best Auto Due Invoices total \$2,897.62.” (C. Supp. Aug. 20, 2025 at p. 1). The email contains a chart listing 17 invoices with a total amount due of \$2,897.62. (*Id.*). For most of the invoices, the freight charge had already been paid and the containers had already been released. (*Id.*; C. 1st RFI Resp. at Req. 5, pp. 1-11, 33-47). The outstanding amounts due on the invoices were for non-freight charges such as fees for bill of lading amendments, detention, inspections, and documentation. (C. Supp. Aug. 20, 2025 at p. 1). The outstanding amount due on each invoice ranged between \$25 and \$650, with most invoices having \$150 or less outstanding. (*Id.*). The email message does not include any statement about late payment fees. (*Id.*).
25. On May 6, 2025, Respondent forwarded Claimant the May 4, 2025, email (PF 24) with the message: “Please make payment of your outstanding balance immediately. If full payment is not received by **2:00 PM on May 6, 2025**, our company reserves the right to

apply a **Late Fee of \$250.00**, an **Administrative Fee of \$100.00**, and other applicable charges **per invoice**.” (R. 1st RFI Resp. at p. 167) (emphasis in original).

26. On May 7, 2025, Respondent sent Claimant an email with the subject line “Final Notice, Best Auto Due Invoices.” (R. 1st RFI Resp. at p. 169). The email message states:

For your clarity, I am citing **Clause 12 of our Contract**, which is public information:

12. FREIGHT AND CHARGES

....

(B) All freight and Charges shall be paid before delivery of the Goods.

....

(D) The Merchant shall, where applicable, be jointly and severally liable to the Carrier for payment of all freight ... and Charges including, without limitation, court costs, interest, expenses, and attorneys’ fees the Carrier incurs in collecting any sums due, failing which shall be considered a default by the Merchant in the payment of freight and Charges.

(*Id.* at 171) (emphasis in original). The email also states:

Consequences of Non-Payment

If full payment is not received by **2:00 PM, May 6, 2025**, Unitrans-PRA reserves the right to charge the following **per invoice**:

- Late Fee: \$250.00
- Admin Fee: \$100.00
- Other applicable fees as necessary

Additionally, if payment is delayed further, we reserve the right to charge:

- \$250 monthly fee
- 1.5% monthly interest starting from the due date
- plus all costs of collection, legal action, and attorneys’ fees

This is your **final opportunity** to resolve this matter. Immediate payment is required.

(*Id.*) (emphasis in original).

27. On May 7, 2025, Claimant responded to Respondent’s “Final Notice, Best Auto Due Invoices” email (PF 26). (C. 1st RFI Reply at Ex. 1, p. 11). Claimant’s email response states, in part:

We would like to clarify that all invoices sent to us previously have been paid in full and on time. We have records of all payments made, and there are no outstanding balances from our side related to approved and legitimate charges.

Please note that any new invoices we received—especially those not pre-approved or lacking proper explanation—are being treated as spam and fraudulent. We will not make any payments for additional charges, including detention fees or any other costs, unless they are explicitly approved by us in advanced and are backed by official documentation from the shipping line.

....

Until you provide proper documentation and seek prior approval for any new charges, no further payments will be made.

(*Id.*).

28. Respondent sent Claimant another email on May 7, 2025, stating, in part:

I granted you time until May 6 to settle your outstanding debts. However, you have chosen not to fulfill your payment obligations. As such, no payment has been received. Please be advised that the [sic] any containers will not be released without full payment in accordance with the invoice. The policy is as follows: if payment is received in full, the container will be released; if payment is not received, the container will remain on hold.

(Answer at Attch. “FW_Final Notice, Best Auto Due Invoices”). Below Respondent’s signature line, the email states: “Please be advised that your invoice should be paid by the specified due date. If payment is not received on time, we reserve the right to charge \$250/late fee plus \$100/admin fee plus \$250/ monthly fee jointly with 1.5% monthly interest starting from the due date.” (*Id.*).

29. Also on May 7, 2025, Respondent sent Claimant an email attaching the following six invoices: Invoice Nos. 91374, 91472, 91475, 91589, 91590, and 91591. (C. 1st RFI Reply at Ex. 1, p. 13). Each of the attached invoices includes an ocean freight charge and late payment fees consisting of a \$250 late payment flat fee, \$100 administrative fee, \$250 monthly fees, and 1.5% finance charge, for a total of \$703.91 to \$850 in late payment fees on each invoice. (R. 1st RFI Resp. at pp. 462-63, 468-69, 474-75, 497-98, 502-03, 507-08). Below Respondent’s signature line, the email states: “Please be advised that your invoice should be paid by the specified due date. If payment is not received on time, we reserve the right to charge \$250/late fee plus \$100/admin fee plus \$250/ monthly fee jointly with 1.5% monthly interest starting from the due date.” (C. 1st RFI Reply at Ex. 1, p. 13).
30. On May 8, 2025, FT&T sent Claimant an email attaching another eight invoices: Invoice Nos. 91476, 91588, 91625, 91691, 91692, 91693, 91695, and 91721. (C. 1st RFI Reply at Ex. 1, p. 4). Each of the attached invoices includes an ocean freight charge and late payment fees consisting of a \$250 late payment flat fee, \$100 administrative fee, and \$250 monthly fees, for a total of \$600 to \$800 in late payment fees on each invoice. (R. 1st RFI Resp. at pp. 112, 479-80, 489-90, 512-13, 532-33, 559, 563, 567). Below the signature block, the email states: “Please be advised that your invoice should be paid by

the specified due date. If payment is not received on time, we reserve the right to charge \$250/late fee plus \$100/admin fee plus \$250/ monthly fee jointly with 1.5% monthly interest starting from the due date.” (C. 1st RFI Reply at Ex. 1, p. 4).

31. Appendix A (“App. A”), appended to the end of this Initial Decision, details the 14 total invoices that were attached to Respondent’s and FT&T’s May 7, 2025, and May 8, 2025, emails (PFs 26, 27). As reflected in Appendix A, the fees assessed due to late payment amounted to a 34% to 94% increase in the total amount due from the original ocean freight charged. (App. A).

32. On May 8, 2025, Claimant sent FT&T an email, copying Respondent, stating:

I kindly ask that you refrain from sending invoices with additional charges. I don’t believe this is fair from your side.

[Respondent] sent me an outstanding balance of \$2,897.62, and **I want to clarify that I never said I wouldn’t pay it.** Since 2021, we have consistently paid on time, including all detention charges issued by your company. I’m simply requesting **proof to understand the charges better**—please try to see my position as well.

I attempted to explain this to [Respondent], but it seems there may have been a misunderstanding. If you can send me the requested information, I will transfer the \$2,897.62 without delay.

(C. 1st RFI Reply at Ex. 1, p. 5) (emphasis in original).

33. On May 13, 2025, Claimant sent an email to FT&T with the subject line “Payment.” (C. 1st RFI Reply at Ex. 1, p. 16). The email message states, “Payment confirmation for outstanding balance is attached.” (*Id.*). The email attachment reflects a transfer of \$2,897.62 to FT&T, with an effective date of May 15, 2025. (*Id.*). This was the amount Respondent stated was due in its May 4, 2025, email. (PF 24).

34. On May 13, 2025, Claimant emailed FT&T, and copied Respondent. (C. Supp. Aug. 20, 2025, at p. 4). The email message states, in part:

I kindly request the release of our paid containers. Today, I transferred the outstanding balance of **\$2,897.62**, as requested by [Respondent]. The payment slip has been sent to both you and [Respondent]. Please remove any additional charges and proceed with the release of the containers accordingly.

(*Id.*) (emphasis in original).

35. On May 13, 2025, Respondent emailed Claimant regarding “outstanding invoices.” (Answer at Attch. “FW_outstanding invoices[1]”). In the email message, Respondent states, in part:

For the past two months, I have reminded you many times about paying the outstanding invoices. Partial payments do not qualify as a basis for releasing containers. Unfortunately, you still don't seem to understand this—you keep arguing, making promises to pay, but the actual payments never come.

....

Finally, you have no credit line with my company. I have never given you one. We operate strictly by law, by invoices, and by contract. So let me repeat, probably for the 10th time: pay your outstanding invoices. You have them all, and you know exactly what they are. You can also ask [FT&T] (copied here) for the full list again if needed.

(*Id.*). Below Respondent's signature line, the email states: "Please be advised that your invoice should be paid by the specified due date. If payment is not received on time, we reserve the right to charge \$250/late fee plus \$100/admin fee plus \$250/ monthly fee jointly with 1.5% monthly interest starting from the due date." (*Id.*).

36. On May 14, 2025, FT&T sent Complainant an email message stating: "Pls. find attached invoices with late payment fees applied[.] Below, you can find your open balance[.] Pls. note, your yesterday's payment of \$2,897.62 has not been posted in our bank yet and not reflected on your open balance." (Answer at Attch. "Re_open balance").
- a. The email message includes a chart listing 27 "open" invoices with amounts due. The chart includes the invoices that were listed in Respondent's May 4, 2025, email "Best Auto Due Invoices total \$2897.62" (PF 24). However, the chart reflects much higher balances owed on each of those invoices (compared to the balance owed that was reflected in the May 4, 2025, email), because of the addition of late fees consisting of a \$250 late payment flat fee, \$100 administrative fee, and \$250 monthly fees. The email attached copies of the invoices which included the addition of the late fees. (Answer at Attch. "Re_open balance"; R. 1st RFI Resp. at pp. 568-638).
 - b. The chart in the email also includes the 14 invoices that Respondent and FT&T previously sent as attachments to their May 7, 2025, and their May 8, 2025, emails (PFs 29, 30). (Answer at Attch. "Re_open balance").
 - c. The chart in the email reflects a total amount due of \$44,606.69. (*Id.*).

37. Claimant responded by email on May 14, 2025, stating:

Could you please re-check the number of containers? There seems to be a significant mistake, as many of the containers were fully paid for and released 2-3 months ago.

Our outstanding balance was \$2,897.62, and I have already paid this amount in full.

I also requested [Respondent] to remove the Administrative Fee, Miscellaneous Charges, and other extra charges. As promised, I have settled the balance that was provided by [Respondent].

(Answer at Attch. “Re_open balance”) (emphasis omitted).

38. FT&T replied on May 14, 2025, stating:

[L]ate payment fees applied to invoices with balance due. Containers were released as a gesture of business appreciation expecting to have it paid ASAP.

[O]n May 4, 2025, you were provided with table showing balances dues [sic] per container / booking with detailed explanations on the charges (BL amendment requests, detentions, etc.).

(Answer at Attch. “Re_open balance”).

39. Claimant responded on May 14, 2025, stating:

I would like to confirm that the balance sent by [Respondent] on May 4th has been fully paid. I reviewed the table that outlines the details—it took me a little time to check, but I agreed to the charges and completed the payment accordingly.

Given this, I kindly ask you to remove all additional fees from the invoices and proceed with the release of my paid containers.

(R. 1st RFI Reply at p. 48).

40. On May 17, 2025, Claimant responded to Respondent’s May 13, 2025, email regarding outstanding invoices (PF 35). (C. 1st RFI Reply at Ex. 1, pp. 13-14). The email message states, in part:

We are surprised by your statement that you repeatedly notified us about outstanding invoices over the past two months. Two months ago, we were not even aware of your involvement in this process, and all invoice-related communications were directed to your staff. Moreover, some invoices were received only after they had already been paid, which demonstrates a lack of consistent communication on your side.

....

Despite the confusion and lack of transparency in the calculations (the origin of certain amounts remains unclear), I fulfilled my commitment and made the payment.

When, upon our request, you are unable to provide any supporting documentation of justification, but instead begin adding additional charges of

\$850 or more to each invoice without explanation, it should not be surprising that our reaction is as it is. ...

....

Please release the two containers that have long been paid for, ask [FT&T] to remove the additional charges applied to the 14 containers, and allow me to settle the remaining bookings.

(*Id.*).

41. On May 29, 2025, FT&T sent Claimant an email stating, “pls. arrange payment for open invoices by the end of May. If payment not received, I will add \$250 ‘monthly fee June’ on Monday June 2nd to open invoices.” (R. 1st RFI Resp. at p. 65).
42. In order to secure the release of the containers, between May 7, 2025, and June 2, 2025, Claimant submitted numerous payments to FT&T which collectively paid the full invoiced balance on the 14 open invoices that FT&T and Respondent sent as attachments to their May 7, 2025, and May 8, 2025, emails (PFs 29, 30). (App. A). The payments corresponded to the amounts listed as due in FT&T’s May 14, 2025, email, which included all of the additional late fees (PF 36). (App. A). In total, Claimant paid \$9,997.07 in late fees. (*Id.*).
43. On June 11, 2025, FT&T sent Claimant an email asking, “pls. advise on your outstanding open balance.” (Answer at Attch. “FW_open banace[1]”). The email message contains a chart listing 12 of the invoices that were originally listed in Respondent’s May 4, 2025, email “Best Auto Due Invoices total \$2897.62” (PF 24). (Answer at Attch. “FW_open banace[1]”). The chart reflects payments made in the amounts that were originally listed as due in the May 4, 2025, email. (*Id.*). However, the chart lists additional amounts due because of the addition of late fees, with a total amount outstanding of \$11,136. (*Id.*). All of the containers listed in the chart had already been released to Claimant. (Answer at p. 3).
44. On June 18, 2025, FT&T sent Claimant an email stating, in part:

[Respondent] asked you multiple times to make payment of \$2897.62 by 2 PM May 6, 2025. Otherwise, Late Fee-\$250.00 plus Admin Fee-\$100.00 and other fees will be applied to all open invoices.

Pls. note, these charges were for containers already released at destination and you had a balance on these due to BL amendments you requested, admin fee for NCB inspection and etc.

A week later after advised payment due day, on May 12, 2025 non-payment charges have been added to the invoices and updated open balance has been sent on May 14, 2025.

We received \$2,897.62 only on May 15, 2025.

Your current balance is \$11,136.

(Answer at Attch. “FW_open banace[2]”) (mistakes omitted).

45. Claimant responded on June 21, 2025, with the message:

What’s your purpose here? Just to squeeze more money out of people through shady and fraudulent charges? Everyone at [Respondent] is aware that all 14 invoices were fraudulently charged!!! And paid by us, including your ridiculous extra fees starting at \$850 per invoice.

You’ve issued invoices in May that include “late fees”, “admin fees” for April. How is that even possible? You can’t retroactively apply late fees to a period before the invoice was even sent. BUT I HAVE FULLY PAID ALL INVOICES!!! And on top of that, you’re trying to tack on over \$11,000 more just because your records say I paid \$150 for a BL change two days late? That’s insane and everyone sees it for what it is. Enough with the games. This is not going away quietly.

(C. 1st RFI Reply at Ex. 1, p. 26).

46. There is no evidence in the record that Claimant ever paid the additional \$11,136 in late fees that FT&T sought to collect in its June 11, 2025, and June 18, 2025, emails (PFs 43, 44).

I. Invoices that include pass-through charges

47. Invoice Nos. 90640, 90855, 91146, 91156, 91588, 91625, 91692, 91009-1, 91010-1, 91289-1, and 91692-1 include pass-through charges assessed by third parties. (R. 1st RFI Resp. at pp. 111-12, 134, 429-30, 436-37, 445-46, 453-54, 489-90, 512-13, 598-99, 608-09, 627-28). The pass-through charges include government inspection fees and charges assessed by the ocean common carrier, such as detention fees. (*Id.*).
48. For each of the invoices that include pass-through charges (PF 47), Respondent has produced the underlying third-party invoice that substantiates each charge that was billed to Respondent and passed-through on Respondent’s corresponding invoice to Claimant. (R. 1st RFI Resp. at pp. 104, 127-29, 431-32, 438-40, 447-49, 455-57, 491-93, 514-29, 600-02, 610-12, 629-31). Respondent passed-through the third-party charges without any markup. (*Id.*).

J. Invoices that include pass-through detention fees

49. Invoice Nos. 90855, 91146, 91156, 91692, and 91289-1 specifically include pass-through detention fees. (R. 1st RFI Resp. at pp. 436-37, 445-46, 453-54, 539-40, 627-628). The total detention fees billed in these five invoices amount to \$1,975. (*Id.*). Claimant made payments totaling \$1,975 for the detention fees billed in Invoice Nos.

90855, 91146, 91156, 91692, and 91289-1. (C. Supp. Aug. 20, 2025, at pp. 1, 10; C. 1st RFI Reply at Ex. 1, p. 16).

50. Appendix B (“App. B”), appended at the end of this Initial Decision, details the detention fees and the date Claimant paid the detention fees.
51. The invoices, issued by Respondent to Claimant, which bill detention fees (PF 49), do not include all of the required minimum information set forth in 46 U.S.C. § 41104(d)(2) and 46 C.F.R. §541.6, such as the earliest container return date, allowed free time, start and end dates of free time, the applicable rate(s) and the rule which the daily rate is based, contact information for fee mitigation requests, and a statement that the charges are consistent with Federal Maritime Commission rules and that the carrier’s performance did not cause or contribute to the charges. (R. 1st RFI Resp. at pp. 436-37, 445-46, 453-54, 539-40, 627-628).
52. Respondent has produced the underlying third-party invoices from the ocean common carrier Hapag-Lloyd that substantiate the detention fees Respondent billed in each of the invoices (PF 49). (R. 1st RFI Resp. at pp. 438-40, 447-49, 455-57, 553-55, 629-31). The Hapag-Lloyd invoices billing detention fees do include the required minimum information set forth in 46 U.S.C. § 41104(d)(2) and 46 C.F.R. §541.6, such as the earliest container return date, allowed free time, start and end dates of free time, the applicable rate(s) and the rule which the daily rate is based, contact information for fee mitigation requests, and a statement that the charges are consistent with Federal Maritime Commission rules and that the carrier’s performance did not cause or contribute to the charges. (*Id.*).

K. Container HBLU3326000

53. Container HBLU3326000 was transported by the ocean common carrier Hapag-Lloyd from Houston, Texas, to Klaipeda, Lithuania, with a sailing date of May 14, 2025 and an arrival date of July 11, 2025. (C. 1st RFI Resp. at Req. 3, p. 2).
54. Respondent billed the shipment of container HBLU3326000 in Invoice Nos. 91692 and 91692-1. (R. 1st RFI Resp. at pp. 106, 134, 329, 539-40; C. Supp. Aug. 18, 2025, at Attch. “Invoice 91692-original”; C. 1st RFI Resp. at Req. 2, p. 3). The record contains four different versions of Invoice 91692 and two different versions of Invoice 91692-1 for the transport of container HBLU3326000. (R. 1st RFI Resp. at pp. 106, 134, 329, 539-40; C. Supp. Aug. 18, 2025, at Attch. “Invoice 91692-original”; C. 1st RFI Resp. at Req. 2, p. 3).
55. The first version of Invoice 91692 in the record reflects the following information:
 - a. Date: 04/28/2025
 - b. Due Date: 04/28/2025
 - c. Entry Date: 04/07/2025
 - d. Description of Charges:
 - i. Ocean Freight: \$1,450

- e. Total Due: \$1,450

(R. 1st RFI Resp. at p. 329).

- 56. The second version of Invoice 91692 in the record adds fees related to an NCB inspection and late payment, and reflects the following information:
 - a. Date: 04/28/2025
 - b. Due Date: 04/28/2025
 - c. Entry Date: 04/07/2025
 - d. Description of Charges:
 - i. Ocean Freight: \$1,450
 - ii. Administrative Fee (4/29 Gate out fees after NCB inspection): \$328
 - iii. Other Charges (as of 5/8/25 late payment flat fee): \$250
 - iv. Administrative Fee: \$100
 - v. Miscellaneous Charges (monthly fee May): \$250
 - e. Total Due: \$2,378

(C. 1st RFI Resp. at Req. 2, p. 3).

- 57. The record contains an April 29, 2025, invoice from the ocean carrier, Hapag-Lloyd, issued to Respondent, for a “Terminal Move Orig” fee of \$228, and an “Admin Fee Origin” of \$100, for a total of \$328, for the container HBLU3326000. (R. 1st RFI Resp. at p. 547).
- 58. On May 8, 2025, FT&T sent Claimant an email attaching the second version of Invoice 91692 (PF 56). (C. 1st RFI Resp. at Req. 2, p. 3; PF 30).
- 59. FT&T’s May 14, 2025, “Re_open balance” email—containing a list of open balance invoices with an amount due totaling \$44,606.69—lists Invoice 91692 and reflects an invoice amount of \$2,378 and an amount due of \$2,378. (Answer at Attch. “Re_open balance”; PF 36).
- 60. The third version of Invoice 91692 in the record adds a rollover fee, and reflects the following information:
 - a. Date: 04/28/2025
 - b. Due Date: 04/28/2025
 - c. Entry Date: 04/07/2025
 - d. Description of Charges:
 - i. Ocean Freight: \$1,450
 - ii. Administrative Fee (4/29 Gate out fees after NCB inspection): \$328
 - iii. Other Charges (as of 5/8/25 late payment flat fee): \$250
 - iv. Administrative Fee: \$100
 - v. Miscellaneous Charges (monthly fee May): \$250
 - vi. Finance Charge (1.5% monthly interest starting from the due date, 4/28/25): \$0

- vii. Rollover Fee (to Cape Pioneer, as container being Gate-in prior Final DG approval): \$325
- e. Total Due: \$2,703

(C. Supp. Aug. 18, 2025 at Attch. "Invoice 91692-original").

- 61. The record contains a May 14, 2025, invoice from the ocean carrier, Hapag-Lloyd, issued to Respondent, for a "Customer Roll Fee" of \$325 for the container HBLU3326000. (R. 1st RFI Resp. at p. 124).
- 62. On May 14, 2025, FT&T sent an email to Claimant attaching the third version of Invoice 91692. (C. 1st RFI Resp. at Req. 2, p. 4). The email message states, "Pls. find attached updated invoice #91692 with Roll over fees." (*Id.*).
- 63. On May 30, 2025, Claimant remitted payment to FT&T's bank account in the total amount of \$14,750, of which \$2,703 was for payment of Invoice 91692. (Claim at Attch. 1). The effective date of payment was June 2, 2025. (*Id.*).
- 64. The fourth version of Invoice 91692 in the record has a different entry date and adds detention fees, and reflects the following information:
 - a. Date: 04/28/2025
 - b. Due Date: 04/28/2025
 - c. Entry Date: 05/28/2025
 - d. Description of Charges:
 - i. Ocean Freight: \$1,450
 - ii. Administrative Fee (4/29 Gate out fees after NCB inspection): \$328
 - iii. Other Charges (as of 5/8/25 late payment flat fee): \$250
 - iv. Administrative Fee: \$100
 - v. Miscellaneous Charges (monthly fee May): \$250
 - vi. Finance Charge (1.5% monthly interest starting from the due date, 4/28/25): \$0
 - vii. Rollover Fee (to Cape Pioneer, as container being Gate-in prior Final DG approval): \$325
 - viii. Detention (from 4/15 to 4/16): \$350
 - ix. Detention (from 4/17 to 4/17): \$225
 - e. Total Due: \$3,278

(R. 1st RFI Resp. at p. 112; C. Supp. Aug. 18, 2025, at Attch. "Invoice 91692-updated").

- 65. The record contains a May 26, 2025, invoice from the ocean carrier, Hapag-Lloyd, issued to Respondent, charging a detention fee from 4/15/25 to 4/16/25 of \$350, and a detention fee from 4/17/25 to 4/17/25 of \$225, for a total of \$575, for the container HBLU3326000. (R. 1st RFI Resp. at pp. 127-29).

66. On June 3, 2025, Claimant remitted payment in the total amount of \$775 to FT&T's bank account, of which \$575 was for payment of Invoice 91692. (C. Supp. Aug. 20, 2025, at p. 10). The payment effective date was June 5, 2025. (*Id.*).
67. On June 9, 2025, Respondent received an email from the ocean carrier, Hapag-Lloyd, stating that container HBLU3326000 was inspected at Cartagena by Antinarcotics Police and was subject to a \$519.60 fee for the inspection. (R. 1st RFI Resp. at p. 104). Email correspondence between Respondent's employees reflects that Invoice 91692 was "blocked for editing," and thus Invoice 91692-1 was created for billing the additional charges for container HBLU3326000. (*Id.* at 104-06).
68. The first version of Invoice 91692-1 in the record reflects the following:
- a. Date: 07/08/2025
 - b. Due Date: 07/08/2025
 - c. Entry Date: 05/28/2025
 - d. Description of Charges:
 - i. Miscellaneous Charges, DG container inspection, inspected at Cartagena by Antinarcotics Police): \$519.60
 - ii. Administrative Fee: \$100
 - e. Total Due: \$619.60
- (R. 1st RFI Resp. at p. 106).
69. The record contains a copy of Hapag-Lloyd's tariff, which reflects an "Export Admin Fee" of \$100. (R. 1st RFI Resp. at p. 132).
70. On July 9, 2025, FT&T sent Claimant an email stating that the container HBLU3326000 was inspected at Cartagena by Antinarcotics Police. (R. 1st RFI Resp. at p. 105). The email states, "the charge is 'USD 519.60 rate per DG container inspection,'" and attaches a copy of the first version of Invoice 91692-1 (PF 68). (*Id.*).
71. On August 7, 2025, Claimant sent a wire transfer of \$620 to FT&T for payment of Invoice 91692-1. (C. 1st RFI Resp. at Req. 2, p. 8). The payment effective date was August 7, 2025. (*Id.*).
72. The second version of Invoice 91692-1 adds a wire transfer fee, and reflects the following:
- a. Date: 07/08/2025
 - b. Due Date: 07/08/2025
 - c. Entry Date: 05/28/2025
 - d. Description of Charges:
 - i. Miscellaneous Charges, DG container inspection, inspected at Cartagena by Antinarcotics Police): \$519.60
 - ii. Administrative Fee: \$100
 - iii. Bank Fee (wire transfer): \$25
 - e. Total Due: \$644.60

(R. 1st RFI Resp. at p. 134).

73. On August 11, 2025, FT&T sent Claimant an email attaching the second version of Invoice 91692-1 (PF 72). (R. 1st RFI Resp. at pp. 133-34). The email message states: “We received \$620 as a wire transfer. You have been previously advised that if payments made by wire transfers, bank fee of \$25 applicable. I have added the bank fee to your invoice, pls. find attached.” (*Id.*). The email message also states, “We cannot release your cargo until it is paid in full.” (*Id.*).
74. In order to secure release of the container, on August 11, 2025, Claimant remitted payment totaling \$200, which included \$25 for the wire transfer fee for Invoice 91692-1. (C. Supp. Aug. 20, 2025, at p. 11). On that same date, Claimant sent Respondent an email to confirm payment was made and to request release of the container. (*Id.*).
75. Respondent subsequently released the container HLB3326000 sometime between August 15, 2025, and August 26, 2025. (R. 1st RFI. Resp. at pp. 135, 138; C. 1st RFI Resp. at Req. 3).
76. The record reflects a total payment of \$3,923 (\$1,450 for ocean freight, \$1,848 in third-party pass-through charges, \$25 for wire transfer fee, and \$600 in late payment fees) for Invoices 91692 and 91692-1. (PFs 63, 71, 74).

IV. ANALYSIS

A. Jurisdiction

The Shipping Act provides that a “person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part.” 46 U.S.C. § 41301(a). Pursuant to this provision, the Commission has exclusive jurisdiction over a complaint alleging that a respondent committed an act prohibited by the Shipping Act. *See Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, Dkt. No. 02-04, 30 S.R.R. 991, 2006 WL 2007808, at *11 (FMC May 10, 2006); *see also Cargo One, Inc. v. COSCO Container Lines Co. Ltd.*, Dkt. No. 99-24, 28 S.R.R. 1635, 1645, 2000 WL 1648961, at *15 (FMC Oct. 31, 2000). While the FMC maintains jurisdiction over claims arising out of violations of the Shipping Act, common law claims rooted in contract lie exclusively with the courts. *Bimsha Int’l v. Chief Cargo Servs., Inc. and Kaiser Apparel, Inc.*, Dkt. No. 10-08, 2013 WL 9808692, at *1 (FMC Sept. 4, 2013); *Cargo One*, 2000 WL 1648961, at *15 (noting that claims alleging breach of contract violations are not properly before the Commission).

Respondent argues that FMC lacks jurisdiction over the Claim because the allegations amount to “ordinary billing disputes.” (Answer at p. 9). Respondents argue that this matter “belongs in state civil court and not before the Commission.” (*Id.*). However, even if the underlying conduct may also give rise to common-law claims that could be litigated in another forum, the Commission nonetheless retains jurisdiction to adjudicate the alleged violations of the Shipping Act. *See MCS Industries, Inc. v. Mediterranean Shipping Co. S.A.*, Dkt. No. 21-05, 2024 WL 95383, at *7 (FMC Jan. 3, 2024) (“FMC precedent makes clear that the agency has jurisdiction over Shipping Act claims even if a related proceeding is underway”) (citing *Anchor Shipping*, 30 S.R.R. 991, 2006 WL 2007808, at *10-11).

Respondent also argues there is a lack of jurisdiction because the invoices and charges at issue “came from” FT&T, which “is not a common carrier and therefore not subject to Shipping Act jurisdiction.” (Answer at p. 9). Respondent, however, concedes that FT&T is its agent serving as “the accounting, receivables management service and collections arm” of Respondent. (R. 1st RFI Resp. at p. 2; Answer at p. 3). “Traditional rules of agency remain applicable under the Shipping Act.” *Final Rule on Demurrage and Detention Billing Requirements* (“*Final Rule*”), 89 Fed. Reg. 14330, 14335 (Feb. 26, 2024) (citing *Landstar Exp. Am., Inc. v. Fed. Mar. Comm’n*, 569 F.3d 493, 495 (D.C. Cir. 2009)). “Fundamental agency law indicates that in a situation where an agent acts on behalf of a disclosed principal, and the agent had authority to act, the principal is liable for the agent’s actions.” *Total Fitness Equip. Inc. v. Worldlink Logistics, Inc.*, Dkt. No. 1831(F), 28 S.R.R. 534, 540, 1998 WL 940255, at *11 (FMC Dec. 10, 1998). “[T]he Commission [has] held that a common carrier may not ‘immunize itself from the common carrier responsibilities placed upon it by the Act by dissociating itself from any of its agents’ activities which are brought into question.’” *Corpco Int’l Inc. v. Straightway, Inc.*, Dkt. No. 97-05, 1998 WL 940257, at *6 (FMC Jun. 8, 1998) (quoting *Hellenic Lines, Ltd. -- Violation of Sections 16 (First) and 17*, 7 FMC 673, 676 (1964)). Moreover, the Commission’s regulations explicitly state that an ocean transportation intermediary, such as Respondent, “is fully responsible for the acts and omissions of any of its employees and agents that are performed in connection with the conduct of the ocean transportation intermediary’s business.” 46 C.F.R. § 515.4(b)(3). Thus, Respondent as the principal is legally responsible for FT&T’s actions as its agent.

B. Burden of Proof

“In all cases governed by the requirements of the Administrative Procedure Act, 5 U.S.C. 556(d), the burden of proof is on the proponent of the motion or the order.” 46 C.F.R. § 502.203. A person alleging a Shipping Act violation, therefore, bears the burden of proof to demonstrate its allegations by a preponderance of the evidence. *See Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Dkt. No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). When direct evidence is unavailable, inferences may be drawn from certain facts and circumstantial evidence may be sufficient so long as the fact finder does not rely on mere speculation. *Waterman S.S. Corp. v. General Foundries, Inc.*, Dkt. No. 93-15, 26 S.R.R. 1173, 1180 (ALJ Dec. 9, 1993) adopted in relevant part, *Waterman S.S. Corp. v. General Foundries, Inc.*, 1994 WL 279898, 26 S.R.R. 1424 (FMC Jun. 13, 1994). If the evidence produced by both parties is evenly balanced, the party with the burden of persuasion will not prevail. *Dir., Off. of Workers’ Comp. Programs, Dept’t of Lab. v. Greenwich Collieries*, 512 U.S. 267, 281 (1994).

C. Alleged Violations

The Claim alleges that Respondent violated sections 41102(c), 41104(a)(3), 41104(a)(5), and 41104(b) of the Shipping Act. The crux of the Claim is that Respondent engaged in unjust and unreasonable practices by “backdating” invoices, adding various late payment fees to outstanding invoices, refusing to release a container despite full payment of the invoiced amount, and charging pass-through fees without supporting documentation. The allegations and supporting evidence raise a cognizable claim under section 41102(c) of the Shipping Act—prohibiting a regulated entity from engaging in unjust or unreasonable practices related to receiving, handling, storing, or delivering property.

While Claimant cites to other sections of the Shipping Act, those sections are inapplicable. Section 41104(a)(3) prohibits common carriers from unreasonably refusing cargo space accommodations when available, or resorting to other unfair or unjustly discriminatory methods. The Claim does not allege a refusal of cargo space. Section 41104(a)(5) applies to services pursuant to a service contract. There is no allegation or evidence of an existing service contract between Claimant and Respondent. Finally, Section 41104(b) is a rule of construction, and does not set forth a basis for a claim under the Shipping Act.

Additionally, while Claimant did not specifically cite to section 41104(a)(15) of the Shipping Act, the allegations and supporting evidence also raise a cognizable claim that Respondent violated the prohibition on invoicing detention charges without the required minimum information set forth in section 41104(d)(2) of the Shipping Act. *See Paul Houben v. World Moving Servs., Inc.*, Dkt. No. 1887(I), 2010 WL 11930208, at *4 (“Pleadings are to be construed liberally and courts have not limited claims to those specifically described in the pleadings as long as a pleading gives another party fair notice of the claim or defense.”); *see also A Customs Brokerage, Inc. v. Cargocare Logistics USA, Inc.*, Dkt. No. 1987(I), 2024 WL 2131767, at *5 n.3 (FMC Apr. 4, 2024) (holding the SCO did not err in “contru[ing] the pro se pleadings liberally, and opt[ing] to analyze the well-pleaded allegations of the complaint” under a different section of the Shipping Act than the section the complaint asserted was violated); *Taylor Resources, Inc. (USA) v. Mitsui O.S.K. Lines Ltd.*, Dkt. No. 1954(F), 2018 WL 1757672, at *5 n.11 (FMC Apr. 4, 2018) (noting approvingly that “[t]he ALJ ... liberally construed Complainant’s filings consistent with its pro se status”). The 2d RFI raised this issue and put Respondent on notice of the potential 41104(a)(15) violation, and Respondent was provided a full and fair opportunity to respond.

D. Section 41102(c) – Unjust or Unreasonable Practices

Section 41102(c) of the Shipping Act states that a “common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). The elements of a section 41102(c) claim are that:

- (1) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (2) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (3) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (4) The practice or regulation is unjust or unreasonable; and
- (5) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

The Commission tests the reasonableness of a regulated entity's practices "by examining how closely the challenged practices are aligned with their stated purpose." *Intermodal Motor Carriers Conf., Am. Trucking Ass'n, Inc. v. Ocema*, Dkt. No. 20-14, 2024 WL 641501 at *20 (FMC Feb. 13, 2024). "This long-standing test, originally applied under the Shipping Act of 1916, asks whether the challenged practices are otherwise lawful, not excessive, and reasonably related, fit and appropriate to the ends in view." *Id.* (cleaned up); *see also Volkswagenwerk Aktiengesellschaft v. Federal Maritime Comm'n*, 390 U.S. 261, 282 (1968) (the question is "whether the correlation of [the] benefit to the charges imposed is reasonable"); *Kawasaki Kisen Kaisha, Ltd. v. Port Auth. of N.Y. & N.J.*, Dkt. No. 11-12, 2014 WL 7328475, at *9 (FMC Nov. 20, 2014) ("a charge is unreasonable if it is not reasonably related, either to an actual service performed for, or a benefit conferred upon, the person being charged") (citation modified). The Commission has held that holding cargo "hostage" in order to obtain additional fees or to collect an unreasonable debt is an unreasonable practice. *See Corpro*, 1998 WL 940257, at *7 ("[The NVOCC] violated section 10(d)(1) of the Act by forcing its customer to pay additional transshipment costs to obtain the negotiable bill of lading necessary to effect the delivery of certain cargo."); *Total Fitness*, 1998 WL 940255, at *14 (attempting to collect an unreasonable debt by refusing the release of cargo was a violation of 10(d)(1)).⁴

"Section 41102(c) was never intended to be a method of resolving every dispute that arises in the receiving, handling, storing or delivering of cargo." *Interpretive Rule, Shipping Act of 1984*, 83 Fed. Reg. 64478, 64479 (Dec. 17, 2018). Instead, the Commission clarified that, historically, a violation of section 41102(c) (and its predecessor statute) requires a showing that "the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business." *Id.* (citations omitted). "Commission precedent has made clear that a single shipment or isolated act or omission does not show a pattern or practice." *Crocus Inv.'s, LLC v. Marine Transp. Logistics, Inc.*, Dkt. No. 15-04, 2021 WL 3732849, at *8 (FMC Aug. 18, 2021).

The first and third elements of a section 41102(c) claim are not at issue, as there is no dispute that Respondent is an NVOCC (PF 2) and that the conduct at issue relates to the transportation of cargo. The following sections address the remaining elements at issue for the conduct Claimant alleges violated section 41102(c).

1. "Backdating" Invoices

Claimant alleges Respondent "backdated" the "Due Date" of the invoices and assessed late payment fees prior to the actual date Claimant was first emailed a copy of the invoice. (C. 1st RFI Resp. at Req. 1). Respondent, in turn, asserts that the invoices reflect an "Entry Date," which is the date the invoice was first made available in its online customer portal and that "[c]ustomers have the opportunity to review and pay their invoices from the time they are created in the system (Entry Date)." (R. 1st RFI Resp. at pp. 191-94). Respondent maintains that "the invoice due date is established only on or after the container is delivered to and accepted at the terminal/port of loading" and that "[a]fter the due date, any unpaid balance is considered

⁴ Cases decided under the Shipping Act of 1984 before it was codified refer to what is currently Section 41102(c) as Section 10(d)(1) of the Shipping Act of 1984.

delinquent.” (*Id.* at 194). In its response to the 1st RFI, Respondent provided a chart reflecting the “Entry Date” and the “Due Date” for each of the invoices at issue—according to Respondent’s chart, the “Entry Date” was always prior to the “Due Date.” (*Id.* at 202). However, the amount of time between the “Entry Date” and the “Due Date” appears to be random, as it varies widely and ranges from 4 days to 26 days. (*Compare id.* at row m. with row e.).

Claimant counters that, although Respondent did send an email in February 2023 with information about its new online tracking tool for invoices (PF 10), the link provided was never functional (it returned a “page not found” result) and Claimant had to rely on Respondent’s agent, FT&T, to email the invoices. (C. 1st RFI Reply at p. 8; C. 1st RFI Resp. at Req. 4, p. 5). The evidentiary record tends to support Claimant’s contention. The record shows a course of conduct in which FT&T would email Claimant invoices with instructions on making payment. (PF 13). The record also demonstrates that Claimant waited on FT&T to email the invoices and even sent “urgent” email requests to FT&T to send invoices. (PF 18). Notably, in the numerous emails exchanged about invoices, FT&T never referenced the online customer portal as a means to access the invoices.

While the parties dispute how and when the invoices were made available to Claimant, the factual issue is ultimately not dispositive of the Claim and need not be resolved. That is because, as discussed below, even assuming Respondent made the invoices available to Claimant prior to the “Due Date” and that Claimant did not pay the invoices by the due date, the fees Respondent assessed for late payment amounted to an unreasonable practice in violation of section 41102(c).

2. Assessing Fees for Late Payment

Claimant alleges that Respondent assessed unreasonable late payment fees that were not disclosed at the time the shipments were booked and were not supported by Respondent’s contract terms. (Claim at p. 1; C. Supp. Aug. 18, 2025 at p. 1; C. 1st RFI Resp. at Req. 1). The record demonstrates that beginning in May 2025, apparently out of frustration over Claimant’s “pattern of delayed payment,” Respondent began adding late payment fees to open invoices. (R. 1st RFI Reply at p. 696; PFs 25-45). The late payment fees included a \$250 “late payment flat fee,” \$100 “administrative fee,” \$250 “monthly fee,” and 1.5% per month “finance charge.” (R. 1st RFI Resp. at pp. 397-98; PFs 26, 29, 30, 36). The record reflects that, in May and June 2025, Respondent added late fees on 26 different invoices. (PFs 29, 30, 43).⁵ Of those, Claimant paid late fees on 14 of the invoices, totaling \$9,997.07 in late payment fees, in order to obtain release of the containers it shipped. (PF 42; App. A). As explained below, Claimant has established by a preponderance of the evidence that Respondent violated section 41102(c) by engaging in an unreasonable practice of assessing excessive fees for late payment.

⁵ The 26 invoices adding late payment fees are located in the record at R. 1st RFI Resp. at pp. 429-30, 436-37, 445-46, 453-54, 462-63, 468-69, 474-75, 479-80, 489-90, 497-98, 502-03, 507-08, 512-13, 532-33, 539-40, 559, 563, 567, 573-74, 580-81, 591-92, 598-99, 608-09, 620-21, 627-28, 637-38.

i. Unreasonable

In order to establish a violation of section 41102(c), the late payment fees must be “unjust” or “unreasonable.” 46 C.F.R. § 545.4(d). Claimant argues that the late fees were unreasonable because they were not disclosed at the time of booking, nor were they disclosed in Respondent’s House Bill of Lading Contract Terms and Conditions. (C. 1st RFI Resp. at Req. 1). In defense of the reasonableness of the late fees, Respondent argues that Claimant was provided with advance notice. (R. 1st RFI Resp. at p. 196). Specifically, the invoices themselves contained the following warning: “We reserve the right to make a Finance Charge of 1.5% per month or the higher rate permitted by law on all amounts past due and add all collection fees. Terms and conditions of transportation as per Air Waybill or Bill of Lading.” (*Id.* at 197; PF 12). Respondent argues:

This provision expressly places customers on notice that finance charges and collection-related costs may be assessed on past-due balances. Consistent with this notice, FT&T may impose percentage-based finance charges and/or fixed collection-related administrative fees reflecting internal receivables management costs where a customer fails to remit payment after receiving notice and a reasonable opportunity to cure.

(R. 1st RFI Resp. at p. 197).

While the invoice language regarding past-due balances did not change, “[i]n 2025, collection-related charges were updated, and customers were informed that, in the event of non-payment, Respondent reserves the right to assess a \$250 late fee, a \$100 administrative fee, a \$250 monthly fee, and interest at a rate of 1.5% per month commencing from the due date.” (*Id.*). As evidence that “[t]hese terms were consistently communicated” to Claimant, Respondent has produced copies of email communications that contain varying language about the consequences of late payment. (*Id.* at 145, 148-83). Respondent maintains the late fees were consistent with the Bill of Lading Contract Terms and Conditions, which provides that the shipper is responsible for payment of all “Charges including, without limitation, court costs, interest, expenses, and attorney’s fees the Carrier incurs in collecting any sums due.” (*Id.* at 198-99).

Respondent’s arguments about providing advanced notice of the late payment fees are unavailing. The “notice” provided by Respondent was inconsistent throughout the parties’ course of dealing. The record demonstrates that FT&T frequently emailed Claimant invoices for payment without including any language in the email warning of late payment fees. (PF 15-17, 24). At other times, FT&T emailed Claimant invoices and included language warning that, in the event of late payment, they “reserve the right to charge \$250 as one time flat fee jointly with 1.5% monthly interest.” (PF 13). Only once Respondent started adding the late fees to the invoices, did Respondent and FT&T start including “updated” language in their emails that “[i]f payment is not received on time, we reserve the right to charge \$250/late fee plus \$100/admin fee plus \$250/monthly fee jointly with 1.5% monthly interest.” (PFs 28-30). While the invoices themselves consistently warned of a “Finance Charge of 1.5% per month or the higher rate permitted by law” and “collection fees,” they did not include any language about an

administrative fee, late payment flat fee, or monthly fee.⁶ The inconsistencies in whether “notice” was provided, as well as the contents of the notice, tends to show the unreasonableness of the late fees that Respondent assessed.

Additionally, Respondent’s argument that the assessment of late fees was consistent with its Bill of Lading Contract Terms and Conditions fails. Neither Respondent’s tariff rules nor Respondent’s Bill of Lading Contract Terms and Conditions specified a \$250 “late payment flat fee,” \$100 “administrative fee,” \$250 “monthly fee,” or 1.5% per month “finance charge.” (PFs 6-9). “The Shipping Act provides that a common carrier may only charge a shipper rates and charges it discloses in a published tariff, unless otherwise exempted.” *Gruenberg-Reisner v. Overseas Moving Specialists, Inc.*, Dkt. No. 1947(I), 2016 WL 11942284 (FMC Oct. 7, 2016) (citing 46 U.S.C. § 40501). The tariff, and the bill of lading terms incorporated by the tariff, do indeed provide that the shipper is responsible for “Charges including, without limitation, court costs, interest, expenses, and attorney’s fees the Carrier incurs in collecting any sums due.” (PFs 6, 9). However, Respondent makes no attempt to justify the fixed fees assessed—the \$250 late payment flat fee, \$100 administrative fee, \$250 monthly fee, and 1.5% finance charge—as bearing any relationship to the *actual* costs, interests, or expenses Respondent incurred in collecting the sums due. Pursuant to its rules tariff, Respondent does arguably have the right to collect actual costs and expenses incurred in collecting sums due, but Respondent does not have the right to automatically charge fixed late fees that bear no relationship to those actual costs.

Above all, the exorbitant amount of the late fees themselves establishes the unreasonableness. Of the 14 invoices in which Claimant paid the late fees, the late fees totaled between \$600 and \$850 on each invoice, which amounted to between a 34% and 94% increase in the total due from the original ocean freight charged. (See App. A; PF 31). While Respondent has an interest in receiving timely payment of the ocean freight for each shipment, late payment fees amounting to 34% to 94% of the ocean freight are certainly “excessive” and not “reasonably related, fit and appropriate to the ends in view.” *Intermodal Motor Carriers*, 2024 WL 641501, at *20. Likewise, it was unreasonable for Respondent to withhold release of the containers until the exorbitant late fees were paid.⁷ See *Corpco*, 1998 WL 940257, at *7; *Total Fitness*, 1998 WL 940255, at *14.

ii. Normal, Customary, and Continuous Practice

The second element of a section 41102(c) claim requires that the unreasonable assessment of late fees occurred on a “normal, customary, and continuous basis.” 46 C.F.R. § 545.4(b). According to Respondent, it did not have an established pattern of assessing late fees:

[T]hroughout the course of [its] operations over multiple years, neither Respondent nor its agents have historically imposed collection-related fees on customers.... The present matter involving Claimant Jimex USA constitutes a

⁶ Out of the 26 invoices in the record with late payment fees, only two invoices actually included a “Finance Charge of 1.5% per month,” which amounted to the relatively small amounts of \$51.16 and \$39.91. (R. 1st RFI Resp. at p. 398).

⁷ See PF 28 (“Please be advised that the [sic] any containers will not be released without full payment in accordance with the invoice. The policy is as follows: if payment is received in full, the container will be released; if payment is not received, the container will remain on hold.”).

rare and isolated deviation from this established pattern, in which payment was not timely made despite notice, thereby necessitating the application of collection-related charges.

(R. 1st RFI Resp. at 197).

However, whether Respondent imposed late fees on other customers is not dispositive of the issue. Respondent acknowledges that it has an “updated” collections policy of assessing a \$250 late payment flat fee, \$100 administrative fee, \$250 monthly fee, and 1.5% finance charge. (*Id.*). As Respondent argues, the updated collections policy was communicated repeatedly in numerous emails sent by Respondent and FT&T. (PFs 26, 28, 29, 30, 35). The evidence shows that Respondent instituted this collections policy and added the various late fees to at least 26 different invoices that Respondent claims were past-due. (PFs 29, 30, 43). Thus, this is not a matter involving “a single shipment or isolated act.” *Crocus*, 2021 WL 3732849, at *8. Rather, the record demonstrates that, beginning in May 2025, assessing the late fees became “the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner” in which Respondent conducted business with Claimant. 83 Fed. Reg. at 64479. Accordingly, this element of a section 41102(c) claim is met.

iii. Proximate Cause of Loss

The final element of a section 41102(c) claim requires that the practice of assessing unreasonable late fees was the proximate cause of the claimed loss. The evidence establishes that, in order to obtain the release of the containers, Claimant paid a total of \$9,997.07 in late fees assessed in 14 invoices. (PF 42; App. A). While Respondent issued 12 other invoices with late fees, the containers billed in those invoices had already been released and there is no evidence that Claimant paid those late fees. (PFs 43, 44, 46). Accordingly, the evidence establishes that Respondent’s unreasonable practice of assessing late fees was the proximate cause of Claimant’s loss in the amount of \$9,997.07.

3. Pass-Through Charges

Claimant also alleges that Respondent violated section 41102(c) because it “improperly altered” third-party detention invoices and failed to provide supporting documentation for pass-through fees. (Claim at p. 1; C. Supp. Aug. 18, 2025, at p. 1; C. 1st RFI Resp. at Req. 1). Respondent denies altering the invoices and has produced the underlying third-party invoices substantiating the pass-through charges. (R. 1st RFI Resp. at pp. 393-96; 438-40, 447-49, 455-57, 553-55, 629-31; Answer at p. 6).

The evidence does not support Claimant’s allegation that Respondent altered third-party detention invoices. The only evidence of alleged “alteration” that Claimant cites to is the fact that two of the Hapag-Lloyd detention invoices that Respondent provided to Claimant have a notation on the bottom stating, “PDF created with pdfFactory trial version www.pdffactory.com,” and that the same two Hapag-Lloyd detention invoices state a different number of free days allowed at the same port of loading (“POL”) under the Hapag-Lloyd freetime tariff. (C. Supp. Aug. 18, 2025 at Attchs. “Letter to Small Claims Officer”, “Hapag-Lloyd invoice 1”, and “Hapag-Lloyd invoice 2”). In its response to the 1st RFI, Respondent

produced the underlying Hapag-Lloyd detention invoices without the notation at the bottom regarding the use of pdfFactory to create the PDF. (R. 1st RFI Resp. at pp. 654-59). Respondent explains that both Hapag-Lloyd detention invoices at issue apply the Hapag-Lloyd tariff for freetime at the POL of Savannah, GA, which provides for 4 *working* days of freetime. (*Id.* at 649). Respondent also produced a copy of the applicable Hapag-Lloyd tariff for “USA-Detention” which shows that the tariff applies 4 “working days” of freetime, with “working day” defined as “when the relevant terminal/facility is open for interchange of respective empty and/or full container.” (*Id.* at 661-63). Respondent explains that the first Hapag-Lloyd invoice reflects 4 days of free time because the 4 working days of free time ran over 4 calendar days from a Tuesday to a Friday. (*Id.*). However, the second Hapag-Lloyd invoice reflects 5 days of free time because the 4 working days of free time ran over 5 calendar days from a Sunday to a Thursday, with Sunday not counting as a working day. (*Id.*). Respondent’s explanation is convincing. Claimant has not proven by a preponderance of the evidence that Respondent “improperly altered” the Hapag-Lloyd detention invoices.

Moreover, for all of the pass-through charges at issue (PF 47), Respondent produced the underlying third-party invoice assessing the charge, which substantiates the charges and demonstrates that Respondent did not mark up any of the pass-through charges. (PF 47). Accordingly, Claimant has failed to show an unjust or unreasonable practice with respect to invoicing pass-through charges.

4. Release of Container HBLU3326000

Finally, Claimant alleges that Respondent violated section 41102(c) by refusing to release container HBLU3326000, even after Claimant fully paid all invoiced charges, including the late fees. (Claim at p. 1). The Claim requests that the Commission order the “immediate release” of the container. (*Id.*).

After the Claim was filed with the Commission, container HBLU3326000 was subsequently released, but the parties disagree as to the date the container was released. (R. 1st RFI Resp. at pp. 135, 138; C. 1st RFI Resp. at Req. 3). Claimant contends that Respondent never communicated the release status of the container, but that Hapag-Lloyd billed demurrage at the destination port through August 26, 2025, and thus that “confirms that the container remained on hold and was not released prior to that date.” (C. 1st RFI Resp. at Req. 3, p. 1). In support of this contention, Claimant submitted a copy of the Hapag-Lloyd demurrage invoices, issued to the consignee (Amber Terminal Klaipeda, UAB) for container HBLU3326000, which reflect demurrage charges from July 19, 2025, through August 26, 2025. (*Id.* at 2). Claimant also produced an August 13, 2025, email from Hapag-Lloyd indicating container HBLU3326000 had not been released yet because “OBL [official bill of lading] still missing.” (*Id.* at 1).

Respondent contends that “container HBLU3326000 was released on or about August 15, 2025.” (R. 1st RFI Resp. at p. 135) (emphasis omitted). Respondent explains that “although Claimant initiated final payment via wire transfer on August 11, 2025 [t]he funds were not cleared and fully available in Respondent’s account until August 12, 2025.” (*Id.*) (emphasis omitted). Respondent further explains, “[u]pon posting of the payment on August 12, 2025, Respondent promptly began the release process. In the regular course of business, processing a

cargo release ... may take up to 72 hours.” (*Id.*) (emphasis omitted). According to Respondent, “[o]n August 15, 2025, Respondent received confirmation from the ocean carrier that the Sea Waybill had been issued and uploaded into its system, at which point the cargo was considered released from the carrier’s side.” (*Id.*) (emphasis omitted). In support of this contention, Respondent provided a copy of an August 15, 2025, email from Hapag-Lloyd attaching the “final non-rated sea waybills” for container HBLU3326000. (*Id.* at 138-39).

The preponderance of the evidence shows that container HBLU3326000 was released by Respondent on or about August 15, 2025, as documented by the August 15, 2025, email from Hapag-Lloyd confirming that the final Sea Waybill had been issued. (*Id.* at 138). Claimant’s argument that demurrage charges continued through August 26, 2025, is unavailing because the demurrage charges ended on the date the consignee actually retrieved the container, which is not necessarily the first date the container was “released” and available for pickup.

i. Unreasonable

Claimant alleges it was unreasonable for Respondent to withhold the release of container HBLU3326000 after receiving payment. The record establishes that as of June 3, 2025—prior to the container’s arrival at the port of destination—Claimant paid a total of \$3,278 for invoiced charges, which included: (1) \$1,450 in ocean freight; (2) \$328 in pass-through fees from an NCB inspection; (3) \$325 in pass-through rollover fees; (4) \$575 in pass-through detention fees; and (5) \$600 in late payment fees. (PFs 63, 64, 66). After Claimant’s payment on June 3, 2025, Respondent received notice from Hapag-Lloyd that the container had been inspected at Cartagena by Antinarcotics Police and was subject to a \$519.60 fee for the inspection. (PF 67). On July 9, 2025, two days prior to the container’s arrival, FT&T emailed Claimant a new invoice for an additional \$619.60 in pass-through charges, which included \$519.60 for the Cartagena Antinarcotics inspection fee and \$100 for Hapag-Lloyd’s administrative fee. (PFs 68-70). The container arrived at the port of destination in Kalipeda, Lithuania, on July 11, 2025. (PF 53). On August 7, 2025, Claimant paid the invoiced amount in full by wire transfer. (PF 67). At that point, despite Claimant having made payment in full, Respondent still did not release the container. Instead, Respondent issued an updated invoice adding a \$25 wire transfer fee. (PF 72). On August 11, 2025, FT&T emailed Claimant the updated invoice, stating, “You have previously been advised that if payments made by wire transfers, bank fee of \$25 applicable. We cannot release your cargo until it is paid in full.” (PF 73). Respondent did not release the container until after Claimant paid the \$25 wire transfer fee on August 11, 2025. (PF 74).

Withholding the release of the container over a purported \$25 wire transfer fee, after Claimant already remitted payment of the invoiced amount in full—to include \$650 in late payment fees—was patently unreasonable.

ii. Normal, Customary, and Continuous Practice

However, section 41102(c) requires that “. . . the unreasonable ... practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business.” 83 Fed. Reg. at 64479 (citations omitted). Claimant only alleges one single incident in which Respondent failed to release a

container despite full payment of the invoiced amount. “Commission precedent has made clear that a single shipment or isolated act or omission does not show a pattern or practice.” *Crocus Investments*, 2021 WL 3732849, at *8. Accordingly, Claimant has failed to meet this element to establish a section 41102(c) violation based on Respondent’s failure to release container HBLU3326000.⁸

iii. Proximate Cause of Loss

Moreover, the record does not establish that Claimant suffered a loss due to Respondent’s delay in releasing the container. Indeed, the Claim seeks an order from the Commission for “immediate release” of the container. (Claim at p. 1). It is undisputed that the container has since been released. While Claimant now contends that Respondent’s delay in releasing the container resulted in demurrage charges to the consignee and that Claimant “has paid compensation to [the] consignee” for the demurrage charges, Claimant has not produced any evidence of such payments. (C. 1st RFI Resp. at Req. 3, p. 3). *See Bimsha Int’l v. Chief Cargo Servs., Inc.*, Dkt. No. 10-08, 2011 WL 7144011, at *28 (ALJ Dec. 14, 2011) (complainant had the burden of proving entitlement to reparations); *James J. Flanagan Shipping Corp. v. Lake Charles Harbor & Terminal Dist.*, 30 S.R.R. 8, 13 (2003) (“As the Federal Maritime Board explained long ago: ‘(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation.’”) (citation omitted).

E. Section 41104(a)(15) – Invoices Billing Detention

Claimant alleges that Respondent assessed detention fees “without valid documentation or justification” and “failed to provide proof of these charges when requested.” (Claim at p. 1). The record includes five invoices issued by Respondent billing pass-through detention fees totaling \$1,975, which Claimant paid in full.⁹ (PF 49).

The Ocean Shipping Reform Act of 2022 (“OSRA”) amended the Shipping Act by, *inter alia*, prohibiting common carriers from issuing an invoice for demurrage or detention charges unless the invoice includes specific minimum information. *See* 89 Fed. Reg. 14330 (Feb. 26, 2024). Under OSRA, section 41104(a)(15) of the Shipping Act (effective June 16, 2022) provides:

(a) In General.—A common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not—

....

(15) invoice any party for demurrage or detention charges unless the invoice includes information as described in subsection (d)

⁸ Respondent invoiced fees related to late payment for the shipment of container HBLU3326000 in Invoice No. 91692. (PF 56). The late fees assessed in Invoice 91692 are included in the order for reparations in the amount of \$9,997.07, as set forth in section V of this decision.

⁹ The five invoices billing detention fees are Invoice Nos. 90855, 91146, 91156, 91692, and 91289-1. (R. 1st RFI Resp. at pp. 436-37, 445-46, 453-54, 539-40, 627-628).

46 U.S.C. § 41104(a)(15).

In turn, section 41104(d) (effective June 16, 2022) provides:

(d) Detention And Demurrage Invoice Information.—

....

(2) CONTENTS OF INVOICE.—An invoice under subsection (a)(15), unless otherwise determined by subsequent Commission rulemaking, shall include accurate information on each of the following, as well as minimum information as determined by the Commission:

- (A) Date that container is made available.
- (B) The port of discharge.
- (C) The container number or numbers.
- (D) For exported shipments, the earliest return date.
- (E) The allowed free time in days.
- (F) The start date of free time.
- (G) The end date of free time.
- (H) The applicable detention or demurrage rule on which the daily rate is based.
- (I) The applicable rate or rates per the applicable rule.
- (J) The total amount due.
- (K) The email, telephone number, or other appropriate contact information for questions or requests for mitigation of fees.
- (L) A statement that the charges are consistent with any of Federal Maritime Commission rules with respect to detention and demurrage.
- (M) A statement that the common carrier's performance did not cause or contribute to the underlying invoiced charges.

Id. § 41104(d); *see also* 46 C.F.R. § 541.6.

When an NVOCC, such as Respondent, passes-through detention charges that are invoiced from an ocean carrier, the NVOCC must issue a detention invoice within 30 calendar days from the issuance date of the detention invoice it received from the ocean carrier. 46 C.F.R. § 541.7(b). If the invoice is not issued within 30 calendar days, the billed party is not required to pay the charge. *Id.* Failure to include the required minimum information on an invoice with any detention charge “shall eliminate any obligation of the charged party to pay the applicable charge.” 46 U.S.C. § 41104(f); *see also* 46 C.F.R. 541.5.

The record demonstrates that Respondent’s invoices issued to Claimant that bill detention fees do not include all of the required minimum information set forth in 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6, such as the earliest container return date, allowed free time, start and end dates of free time, the applicable rate(s) and the rule which the daily rate is based, contact information for fee mitigation requests, and a statement that the charges are consistent with Federal Maritime Commission rules and that the carrier’s performance did not cause or contribute to the charges. (*See* R. 1st RFI Resp. at pp. 436-37, 445-46, 453-54, 539-40, 627-628).

In response to the First RFI, Respondent produced the underlying ocean common carrier invoices, issued from Hapag-Lloyd to Respondent, that bill the detention fees Respondent “passed through” in each of the invoices it issued to Claimant. (R. 1st RFI Resp. at pp. 438-40, 447-49, 455-57, 553-55, 629-31). The Hapag-Lloyd invoices billing detention fees do include all of the required minimum information set forth in 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6. (*Id.*).

Claimant maintains that Respondent did not provide the underlying Hapag-Lloyd detention invoices “at the time Respondent demanded payment of the detention charges” and that Respondent violated 46 U.S.C. § 41104(a)(15) by issuing invoices billing detention charges without including the minimum information required by 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6. (C. 2d RFI Resp. at pp. 1-2). Respondent, in turn, argues that content requirements for invoices billing detention fees do not apply to its own invoices (only the Hapag-Lloyd invoices) because the invoices it issued “functioned as accounts receivable documents reflecting pass-through carrier charges and other transportation-related services, not as detention assessment invoices.” (R. 2d RFI Resp. at p. 806). In other words, “Respondent’s role was limited to communicating and invoicing charges assessed by the ocean carrier.” (*Id.* at 793). Moreover, Respondent maintains that the underlying Hapag-Lloyd detention invoices were “uploaded to Respondent’s ... customer portal shortly after receipt” and that “Respondent understood that Claimant had access to the underlying Hapag-Lloyd invoice through the same electronic document management system...” (R. 2d RFI Resp. at pp. 3, 18). Claimant contends it was never able to access Respondent’s customer portal because the web link Respondent provided returned a “page not found” result. (C. 1st RFI Reply at p. 8; C. 1st RFI Resp. at Req. 4, p. 5).

Respondent’s argument that the content requirements of 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6 do not apply to its invoices billing detention fees is unavailing. In issuing the *Final Rule*, the Commission recognized that an NVOCC, such as Respondent, may be “both a billed party and a billing party on the same shipment,” where the NVOCC is billed detention fees by the VOCC and then passes-through those charges from the VOCC to its customer. 89 Fed. Reg. 14337. In these situations, “NVOCCs must still follow the correct procedures for issuing an invoice when acting as a ‘billing party.’” *Id.* Thus, in issuing the detention invoices to Claimant, Respondent acted in the capacity of the “billing party” subject to the requirements of 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6.

The *Final Rule* also addresses the question of “whether a billing party may provide the required data elements as an attachment, addendum, additional pages, etc. to their invoice.” 89 Fed. Reg. 14341. In response, the Commission clarified:

The required information may be included as an attachment to the invoice, as the statute simply requires that invoices “include” this information. In addition, § 541.6 states that an invoice must “contain” that information. As such, it is the Commission’s position that this information may be included as an attachment, or otherwise incorporated. An NVOCC passing through VOCC demurrage or detention charges can satisfy the requirements by merely attaching the ocean carrier’s invoice if that invoice contains all the necessary information in § 541.6.

Id.

Thus, in accordance with Commission guidance, Respondent could have met the invoice content requirements of 46 U.S.C. § 41104(d)(2) and 46 C.F.R. § 541.6 by simply attaching the Hapag-Lloyd invoice (which contained all the necessary information) to its own invoice passing through the charges. However, the preponderance of the evidence demonstrates that the underlying Hapag-Lloyd invoices (containing the required information) were not “attached,” “include[d],” “contain[ed],” or “otherwise incorporated” in the invoices issued by Respondent. In this proceeding, Respondent produced the invoices that are at issue. (R. 1st RFI Resp. at pp. 436-37, 445-46, 453-54, 539-40, 627-628). The invoices do not have any attachments, do not refer to a Hapag-Lloyd invoice number, nor reference in any way that the detention fees are charged as “pass-through” fees from a Hapag-Lloyd invoice. (*Id.*). Respondent argues that Claimant had “access to” the underlying Hapag-Lloyd invoice through the online customer portal (which Claimant disputes)—even assuming Claimant had “access” to the Hapag-Lloyd invoices, this falls short of the requirement that Respondent’s invoice “attach,” “include,” “contain,” or “otherwise incorporate” the underlying invoice. While this is a strict application of the requirement, it aligns with “the plain language of the statute show[ing] an intent by Congress to address in a targeted manner the failures of the current invoicing process,” and to “ensure that it is clear to shippers ‘what is being billed by whom.’” 89 Fed Reg. 14333, 14330.¹⁰

Finally, Respondent suggests that the “safe harbor” provision under 46 U.S.C. § 41104(e) is applicable. (R. 2d RFI Resp. at p. 793). Under the safe harbor provision, if an NVOCC “passes through to the relevant shipper an invoice made by the ocean common carrier” and is “not otherwise responsible for the charge,” it is the ocean common carrier who will be responsible for a refund if its passed-through invoice fails to meet the content requirements. 46 U.S.C. § 41104(e). In this “certain, specified scenario” the safe harbor provision “shifts responsibility for refunds from the NVOCC to the ocean common carrier.” Here, however, the deficiency is not in the ocean common carrier’s invoice, but rather in Respondent’s invoice. On this point, the Commission has clarified that the safe harbor provision “does not exempt NVOCCs from the demurrage and detention invoice requirement of 46 U.S.C. 41104(d)(2).” 89 Fed Reg 14336.

In sum, Respondent violated 46 U.S.C. § 41104(a)(15) by invoicing detention charges where the invoice did not include the required contents set forth in section 41104(d)(2) and 46 C.F.R. § 541.6. Respondent’s failure to include the required information eliminates Claimant’s obligation to pay the detention fees pursuant to 46 U.S.C. § 41104(f). Accordingly, Claimant is entitled to a refund of the \$1,975 in improperly invoiced detention fees that it paid to Respondent.

V. CONCLUSION

For the reasons discussed above, Claimant has established by a preponderance of the evidence that Respondent violated 46 U.S.C. § 41102(c) by engaging in an unreasonable practice of assessing excessive late payment fees. Claimant is entitled to reparations for the late payment fees it paid in the amount of \$9,997.07. Additionally, Respondent violated 46 U.S.C.

¹⁰ Quoting Fact Finding Investigation No. 29, Interim Recommendations at 6 (July 28, 2021), available at: <https://www2.fmc.gov/ReadingRoom/docs/FFno29/FF29%20Interim%20Recommendations.pdf/> (last visited Jul. 15, 2026).

§ 41104(a)(15) by invoicing detention charges where the contents of the invoice did not include the required minimum information set forth in section 41104(d)(2) and 46 C.F.R. § 541.6. Claimant is entitled to a refund in the amount of \$1,975 for the improperly invoiced detention charges.

It is hereby **ORDERED** that the Claim is **GRANTED IN PART AND DENIED IN PART**. It is

FURTHER ORDERED that Respondent violated 46 U.S.C. § 41102(c) and must pay Claimant reparations in the amount of \$9,997.07, plus interest as calculated from the date of injury (identified in App. A as the date of payment of late fees). It is

FURTHER ORDERED that Respondent violated 46 U.S.C. § 41104(a)(15) and must refund Claimant in the amount of \$1,975, plus interest as calculated from the date of injury (identified in App. B as the date Claimant paid the detention fees). It is

FURTHER ORDERED that the remainder of the claims and request for additional reparations are **DENIED**.

Jamie L.
Mendelson -S -S

Digitally signed by
Jamie L. Mendelson

Jamie L. Mendelson
Small Claims Officer

APPENDIX A

Invoice 91374 (R. 1st RFI Resp. at pp. 462-63)		
Date	03/19/2025	
Due Date	03/19/2025	
Entry Date	03/13/2025	
Description of Charges	Ocean Freight	\$2,075
	Other Charges (as of 5/7/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly fee May, partial payment 5/7/25)	\$56
	Finance Charge (1.5% monthly interest 3/19/25-5/7/25)	\$51.16
Total Due	\$2,925.00	
Payments made (C. 1st RFI Resp. at Req. 5, pp. 6, 12-14)	05/07/25	\$2,075
	05/20/25	\$707.16
Total Payments	\$2,782.16	
Total fees paid related to late payment	\$707.16	
Date of payment of late fees	05/20/25	
Amount of late fees as a percentage of the ocean freight	34%	

Invoice 91472 (R. 1st RFI Resp. at pp. 468-69)		
Date	03/19/2025	
Due Date	03/19/2025	
Entry Date	03/13/2025	
Description of Charges	Ocean Freight	\$2,075
	Other Charges (as of 5/7/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly fee May, partial payment 5/8/25)	\$64
	Finance Charge (1.5% monthly interest 3/19/25-5/7/25)	\$39.91
Total Due	\$2,778.91	
Payments made (C. 1st RFI Resp. at Req. 5, pp. 15-17)	05/05/25	\$2,075
	05/20/25	\$703.91
Total Payments	\$2,778.91	
Total fees paid related to late payment	\$703.91	
Date of payment of late fees	05/20/25	
Amount of late fees as a percentage of the ocean freight	34%	

Invoice 91475 (R. 1st RFI Resp. at pp. 474-75)		
Date	03/31/2025	
Due Date	03/31/2025	
Entry Date	03/25/2025	
Description of Charges	Ocean Freight	\$900
	Other Charges (as of 5/7/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 3/31/25)	\$0
Total Due	\$1,750	
Payments made (C. 1st RFI Resp. at Req. 5, pp. 18-19)	05/28/25	\$1,750
Total Payments	\$1,750	
Total fees paid related to late payment	\$850	
Date of payment of late fees	05/28/25	
Amount of late fees as a percentage of the ocean freight	94%	

Invoice 91476 (R. 1st RFI Resp. at pp. 479-80)		
Date	03/31/2025	
Due Date	03/31/2025	
Entry Date	03/25/2025	
Description of Charges	Ocean Freight	\$2,075
	Rollover fee (3/13 Request to roll for earlier vessel)	\$25
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 3/31/25)	\$0
Total Due	\$2,950	
Payments made (C. 1st RFI Resp. at Req. 5, p. 21)	05/28/25	\$2,950
Total Payments	\$2,950	
Total fees paid related to late payment	\$850	
Date of payment of late fees	05/28/25	
Amount of late fees as a percentage of the ocean freight	41%	

Invoice 91588 (R. 1st RFI Resp. at pp. 489-90)		
Date	04/14/2025	
Due Date	04/14/2025	
Entry Date	04/01/2025	
Description of Charges	Ocean Freight	\$1,700
	Customs Charge (4/15 Customs Examination fees)	\$1,931
	Documentation (5/01 BL Amendment)	\$150
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April, 4/14/25-4/30/25)	\$136
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/14/25)	\$0
Total Due	\$4,517	
Payments made (C. 1st RFI Resp. at Req. 5, p. 22)	05/30/25	\$4,517
Total Payments	\$4,517	
Total fees paid related to late payment	\$736	
Date of payment of late fees	05/30/25	
Amount of late fees as a percentage of the ocean freight	43%	

Invoice 91589 (R. 1st RFI Resp. at pp. 497-98)		
Date	04/14/2025	
Due Date	04/14/2025	
Entry Date	04/07/2025	
Description of Charges	Ocean Freight	\$1,150
	Other Charges (as of 5/7/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/14/25)	\$0
Total Due	\$2,000	
Payments made (C. 1st RFI Resp. at Req. 5, p. 22)	05/30/25	\$2,000
Total Payments	\$2,000	
Total fees paid related to late payment	\$850	
Date of payment of late fees	05/30/25	
Amount of late fees as a percentage of the ocean freight	74%	

Invoice 91590 (R. 1st RFI Resp. at p. 502-03)		
Date	04/14/2025	
Due Date	04/14/2025	
Entry Date	04/09/2025	
Description of Charges	Ocean Freight	\$2,050
	Other Charges (as of 5/7/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/14/25)	\$0
Total Due	\$2,900	
Payments made (C. 1st RFI Resp. at Req. 5, p. 26)	05/23/25	\$2,900
Total Payments	\$2,900	
Total fees paid related to late payment	\$850	
Date of payment of late fees	05/23/25	
Amount of late fees as a percentage of the ocean freight	41%	

Invoice 91591 (R. 1st RFI Resp. at pp. 507-08)		
Date	04/14/2025	
Due Date	04/14/2025	
Entry Date	04/10/2025	
Description of Charges	Ocean Freight	\$1,700
	Other Charges (as of 5/7/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly fee April)	\$250
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/14/25)	\$0
Total Due	\$2,550	
Payments made (C. 1st RFI Resp. at Req. 5, p. 27)	05/30/25	\$2,550
Total Payments	\$2,550	
Total fees paid related to late payment	\$850	
Date of payment of late fees	05/30/25	
Amount of late fees as a percentage of the ocean freight	50%	

Invoice 91625 (R. 1st RFI Resp. at pp. 512-13)		
Date	04/22/2025	
Due Date	04/22/2025	
Entry Date	04/14/2025	
Description of Charges	Ocean Freight	\$975
	Handling Fee (4/21 Gate Out fees- after NCB inspection)	\$600
	Administrative Fee (4/29 Administrative fee related to NCB inspection)	\$692
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/22/25)	\$0
	Rollover Fee	\$450
Total Due	\$3,317	
Payments made (C. 1st RFI Resp. at Req. 5, p. 28; R. RFI Reply at p. 28)	05/28/25	\$2,867
	06/02/25	\$450
Total Payments	\$3,317	
Total fees paid related to late payment	\$600	
Date of payment of late fees	05/28/25	
Amount of late fees as a percentage of the ocean freight	61.5%	

Invoice 91691 (R. 1st RFI. Resp. at pp. 532-33)		
Date	04/28/2025	
Due Date	04/28/2025	
Entry Date	04/15/2025	
Description of Charges	Ocean Freight	\$1,150
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/28/25)	\$0
	Bank fee (wire transfer)	\$25
Total Due	\$1,775	
Payments made (C. 1st RFI Resp. at Req. 5, p. 29)	05/23/25	\$1,775
Total Payments	\$1,775	
Total fees paid related to late payment	\$600	
Date of payment of late fees	05/23/25	
Amount of late fees as a percentage of the ocean freight	52%	

Invoice 91692 (R. 1st RFI Resp. at p. 112)		
Date	04/28/2025	
Due Date	04/28/2025	
Entry Date	05/28/2025	
Description of Charges	Ocean Freight	\$1,450
	Administrative Fee (4/29 Gate out fees after NCB inspection)	\$328
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest starting from the due date, 4/28/25)	\$0
	Rollover Fee (to Cape Pioneer, as container being Gate-in prior Final DG approval)	\$325
	Detention (from 4/15 to 4/16)	\$350
	Detention (from 4/17 to 4/17)	\$225
Total Due	\$3,278	
Payments made (Complaint at Attch. 1; R. 1st RFI Resp. at pp. 127-129)	05/30/25	\$2,703
	06/03/25	\$575
Total Payments	\$3,278	
Total fees paid related to late payment	\$600	
Date of payment of late fees	05/30/25	
Amount of late fees as a percentage of the ocean freight	41%	

Invoice 91693 (R. 1st RFI Resp. at p. 559)		
Date	04/28/2025	
Due Date	04/28/2025	
Entry Date	04/14/2025	
Description of Charges	Ocean Freight	\$975
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/28/25)	\$0
Total Due	\$1,575	
Payments made (C. 1st RFI Resp. at Req. 5, p. 31)	05/28/25	\$1,575
Total Payments	\$1,575	
Total fees paid related to late payment	\$600	
Date of payment of late fees	05/28/25	
Amount of late fees as a percentage of the ocean freight	61.5%	

Invoice 91695 (R. 1st RFI Resp. at p. 563)		
Date	04/28/2025	
Due Date	04/28/2025	
Entry Date	04/16/2025	
Description of Charges	Ocean Freight	\$1,150
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/28/25)	\$0
Total Due	\$1,750	
Payments made (C. 1st RFI Resp. at Req. 5, pp. 31-32)	05/23/25	\$1,750
Total Payments	\$1,750	
Total fees paid related to late payment	\$600	
Date of payment of late fees	05/23/25	
Amount of late fees as a percentage of the ocean freight	52%	

Invoice 91721 (R. 1st RFI Resp. at p. 567)		
Date	04/28/2025	
Due Date	04/28/2025	
Entry Date	04/14/2025	
Description of Charges	Ocean Freight	\$1,700
	Other Charges (as of 5/8/25 late payment flat fee)	\$250
	Administrative Fee	\$100
	Miscellaneous Charges (monthly May)	\$250
	Finance Charge (1.5% monthly interest from the due date, 4/28/25)	\$0
Total Due	\$2,300	
Payments made (C. 1st RFI Resp. at Req. 5, p. 33)	05/23/25	\$2,300
Total Payments	\$2,300	
Total fees paid related to late payment	\$600	
Date of payment of late fees	05/23/25	
Amount of late fees as a percentage of the ocean freight	35%	

APPENDIX B

Invoice No.	Description of detention fees billed in invoice	Amount of detention fees billed in invoice	Date Claimant paid the detention fees
90855 (R. 1st RFI Resp. at pp. 436-37)	Detention	\$650	05/15/2025 (C. Supp. Aug. 20, 2025, at p. 1; C. 1st RFI Reply at Ex. 1, p. 16)
91146 (R. 1st RFI Resp. at pp. 445-46)	Detention, gate out 1/31, gate in 2/6	\$125	05/15/2025 (C. Supp. Aug. 20, 2025, at p. 1; C. 1st RFI Reply at Ex. 1, p. 16)
91156 (R. 1st RFI Resp. at pp. 453-54)	Detention, gate out 1/28, gate in 2/4	\$375	5/15/2025 (C. Supp. Aug. 20, 2025, at p. 1; C. 1st RFI Reply at Ex. 1, p. 16)
91692 (R. 1st RFI Resp. at pp. 539-40)	Detention, 5/26 Detention Origin 175 usd/ per day: From 4/15 00:00 to 4/16 23:59 – 2 x days Detention, 5/26 Detention Origin 225 usd/ per day: From 4/17 00:00 to 4/17 10:50-1 x day	\$575	06/05/2025 (C. Supp. Aug. 20, 2025, at p. 10)
91289-1 (R. 1st RFI Resp. at pp. 627-628)	Detention, DG – Detention fees: Gate- OUT 2/18 – Gate – IN 2/24	\$250	05/15/2025 (C. Supp. Aug. 20, 2025, at p. 1; C. 1st RFI Reply at Ex. 1, p. 16)